



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 20
WEDNESDAY, 26 AUGUST 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 20
Wednesday, August 26, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:01 a.m., Wednesday, August 26, 2026, with the Senate sitting as an Impeachment Court, the Senate President, Win Gatchalian, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Sen. Mark A. Villar led the prayer, to wit:

Heavenly Father, we come before You today seeking Your guidance and wisdom. Align our hearts with Yours, and our plans with Your purpose. Grant us the wisdom to discern absolute truth from partisan noise. We ask for that generous wisdom, Lord, so we can make decisions that reflect Your love and justice. Clear our minds so that we can make fair and righteous rulings in this impeachment trial. May we always lean on Your understanding and not our own. Provide us with the courage to rule with strict impartiality, ensuring fairness to both the accused and the people we serve. May our decisions honor the Constitution, uphold the rule of law, and preserve the integrity of our nation. Guide us in humility, compassion, and integrity as we serve, knowing that we are accountable to You above all. In Jesus' name, we pray.
Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following Senator-Judges responded:

Aquino, B.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Hontiveros, R.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Marcos, I. R.	Zubiri, J. M. F.
Padilla, R.	



With 17 senators present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A), Cayetano (P), and Go were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judge Dela Rosa was absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of the *Journal* of Impeachment Trial No. 19 (August 25, 2026) of the Senate sitting as an Impeachment Court and considered it approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered on behalf of the Panel of Prosecutors.

Atty. Michael Poa entered the same appearances on behalf of the Respondent.

MANIFESTATION OF THE PRESIDING OFFICER

Presiding Officer Escudero informed the Court that, as discussed the previous day, the proceedings would begin with a brief response from Atty. Amando Virgil Ligutan, Counsel for the Panel of Prosecutors, after which a ruling would be issued on the matters raised by Atty. Sheila Sison, Counsel for the Respondent, and other related issues.

Thereafter, he stated that the Court would proceed with the cross-examination of the witness by Atty. Kristine Ferrer, Counsel for the Respondent, followed by redirect and/or recross-examination by the Counsel for the Panel of Prosecutors, if any.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Poa stated that the Counsel for the Respondent had been informed of an interview conducted after the previous day's proceedings, in where the use of the word "scam" and related terms were reportedly reiterated. He requested that the matter be addressed in the ruling of the Presiding Officer for the guidance of the parties. Presiding Officer Escudero confirmed that the matter will be addressed in the ruling.

Representative Chua requested that Attorney Ligutan be recognized for a brief statement.

STATEMENT OF ATTORNEY LIGUTAN

Attorney Ligutan read his statement before the Court, to wit:

A teacher. A lawyer. A rule on cross-examination. A Facebook post. How did we get here? Last August 12 before trial was adjourned, it was a Wednesday, out of the blue, the Defense made a manifestation, or should I say, a big issue of my Facebook post earlier that morning. My post reads: "A principle all lawyers and law students know by heart: Misleading questions are not allowed even on cross-examination," period. The Defense surmised it is a reaction to that viral exchange between the opposing Counsels that morning. A lawyer for the Defense said, in effect, that misleading questions are allowed. We all heard it. It immediately caused an uproar on social media, especially in the legal community where it is a well-entrenched rule that, misleading questions are not allowed even on cross-examination. It is a truism as irrefutable as the sun rising in the east and setting in the west. It is a principle all lawyers and law students should know by heart.

But why post it on Facebook? Your Honors, why not? Yes, I am a lawyer. But more than just a lawyer, first and foremost, I am a teacher. *Isa po akong guro. Usa ko ka maestro*, and I'm proud to be one. I have been a lawyer for almost 16 years, but I have been a teacher, an educator for almost 20. *At alam ng ating mga magigiting na guro sa buong kapuluan na ang pagtuturo ay likas sa ating mga guro. Ang pagtuturo, ang pagtatama ng mali ay walang pinipiling lugar at walang pinipiling panahon.* That's why I made that post. I was concerned that the statement made in open Court, that misleading questions are allowed, will go unchecked. My "teacher's instinct" kicked in. I wanted the students I left in Cebu, especially in the University of San Jose-Recoletos School of Law where I have been teaching for the past 15 years, and recently in the University of Cebu School of Law, and in Diliman, my alma mater, the University of the Philippines' College of Law, and all law students out there, I want them to know that a teacher had heard that wrong statement in open Court, and he is correcting that mistake on Facebook, as I have been doing the past years.

To the Defense, I shall not name names, I will not put you on the spot, but the post is not about you. It's not personal. It is about the law that we all adhere to. It is about what we teach the public who are watching our trial. Correcting a mistake is never wrong. Doing it while a hearing is ongoing online does not make it not right. *Ang pagtatama ng mali ay kailanman hindi ipinagbabawal kahit sa loob ng Impeachment Court na ito.*

Now, the Defense said they found it troubling or in bad taste for a prosecution lawyer like me to, quote, "do this," unquote, in the middle of a courtroom hearing. But do what? Correct a wrong?

On the contrary, Your Honors, what is more troubling is for the Defense not to admit their mistake, and instead, call out a lawyer, a teacher, who just stated what is correct in his own time, and in his own Facebook account. What is troubling is if we turn a correction of a mistake by one side into a shield from fair criticism for the other.

Now, the Defense is asking this Court to act on my post. It is elevating it to a serious courtroom violation. But what did I violate? I did not discuss the merits of the case. I did not discuss the strength or the weakness of the oral arguments, or evidence, of either side. I only stated, without mentioning any name, using the most neutral of font color and background, black and gray, without adding any emoticon, without splicing anything, what the rules of procedure simply provide, that misleading questions are not allowed even on cross-examination.

Your Honors, we, in the Prosecution also have rights. I, for one, did not surrender my freedom to teach and to enlighten when I decided to participate in this trial. *Patuloy po akong magigiting guro kahit sa loob ng Impeachment Court na ito.*

Lastly, Your Honors, the Defense mentioned humility. that I should have been humble enough not to post that now viral statement.

Your Honors, being a *probinsyano* from Leyte, Samar, and Cebu, and coming from a middle-income family born without a famous family name, who had to compete for his path in this capital, I know a thing or two about humility. The Defense cannot lecture me on humility. If there is somebody who needs to be reminded about humility, it's them—the Defense. It is the opposite of humility—it is pride not to admit a mistake, or worse, call out someone who simply corrected that mistake.

REMARKS OF THE PRESIDING OFFICER

The Presiding Officer acknowledged Attorney Ligutan's response and, referring to the exchange in the transcript of stenographic notes (TSNs) on "leading" and "misleading" questions, noted that overlapping statements between Attorneys Ferrer and Kapunan might not have been accurately captured. He stated that the Court would review the video recording to determine whether Attorney Ferrer had referred to "leading" questions, as initially stated by Atty. Kapunan, before the latter corrected herself, to add "misleading" questions. He further stated that the matter would be addressed in the ruling, emphasizing that, under the *Rules of the Senate*, Counsel for the parties must refrain from commenting on the merits of the proceedings beyond a fair and true report of what transpired. He likewise stressed that being a teacher does not exempt a lawyer from the *Code of Professional Responsibility and Accountability*, (CPRA), particularly in dealing with fellow Counsel before the Impeachment Court.

The Presiding Officer acknowledged and ordered that the statement of Attorney Ligutan, be entered into the *Record and Journal of the Senate Sitting as an Impeachment Court on the Trial of Vice President Sara Zimmerman Duterte*.

RULING OF THE PRESIDING OFFICER

Presiding Officer Escudero delivered the following *Triple Ruling on the Impartiality and Decorum of the Senator-Judges and Counsel*, to wit:

With the permission of the Senator-Judges, the Chair wishes to address certain matters as it is necessary to protect the integrity of this trial.

It has come to the Chair's attention over time that public statements attributed to persons covered by the *Rules on Impeachment*, whether made in interviews or on social media, appear to concern the evidence, the credibility of witnesses, and issues pending before this Court, which may fall within the prohibition under Rule 18 of this Court. Although the immediate matter arose from statements and conduct involving respective Counsel last August 12, it raises broader concerns affecting the impartiality, decorum, and integrity of the Impeachment Court.

Before imposing or enforcing standards of restraint upon the parties and their own Counsel, the Court must first look inward and put its own house in order. The Chair shall therefore resolve these matters in three parts: first, the duties of impartiality and decorum incumbent upon senator-judges; second, the scope, coverage, and prospective enforcement of Rule 18; third, the specific guidelines governing compliance with Rule 18.

First Ruling: Senator-Judges – Impartiality, Decorum, and the Internal Remedy

First, Senator-Hudges' impartiality, decorum, and the internal remedy. The Chair begins where institutional discipline must always begin—with the Court itself. The restraint, impartiality, and decorum demanded of the parties and their Counsel must first be exemplified by those who sit in judgment. As senator-judges, let us keep in mind our oath, quote, "To do impartial justice according to the Constitution and the laws of the Philippines," close quotations. And the requirement under Rule 3 of the *Rules of Impeachment* to observe political neutrality therein defined as, quote, "The exercise of a public's official duty without unfair discrimination and regardless of party affiliation or preference."

The Chair likewise cites the relevant provisions of the 2025 *Code of Judicial Conduct and Accountability*, or CPRA, on impartiality and the *sub judice* rule:

Canon III, Section 10 provides, quote, "During the pendency of a case, a judge shall not knowingly make any comment in and out of court that could reasonably be expected or perceived to affect its outcome, impair the fairness of the process, or diminish the public's confidence in the court's impartiality."

Canon IV, Section 24 provides, quote, "A judge shall not engage or use any form of expression which tends to violate or has the effect of violating the *sub judice* principle, provoke or inflame

divisive and contentious issues of public concern, or project an image not compatible with the dignity of their position.”

Taken as a whole, these principles remind us of our duty to preserve the impartiality of this Court and the fairness of these proceedings.

As the court said in *People v. Court of Appeals*, GR No. 118882, “This Court has repeatedly and consistently demanded, quote, ‘the cold neutrality of an impartial judge as the indispensable imperative of due process. Judicial proceedings are not orchestrated plays in which the parties are supposed to make motions and reach the *denouement* according to a prepared script. There is no writer to foreordain the ending,’” close quotation.

Also, in *Berso v. Rabe*, AM No. RTJ-21-010: “A judge must not only be impartial, but must also appear to be impartial as an added assurance to the parties that his decision will be just. Litigants are entitled to no less than that.” For avoidance of doubt, this shall not prevent Senator-Judges from examining the evidence where the examination belongs during the proceedings and on the record.

The Supreme Court in *People v. Guambor*, GR 152183, said: “The trial judge is accorded a reasonable leeway in putting such questions to witnesses as may be essential to elicit relevant facts, to make the record speak the truth. A judge may examine or cross-examine a witness. He may propound questions to test the credibility of the witness and to extract the truth. He may seek to draw out relevant and material testimony, though that testimony may tend to support or rebut the position taken by one or the other party. It cannot be taken against him if the clarificatory questions he propounds happen to reveal certain truths which tend to destroy the theory of one party.”

Taken together, Rule XVII and the *Guambor* case confirm that a searching question is not partial merely because the answer may aid one side or weaken the other. The Prosecution and the Respondent’s Counsel must be prepared to answer such questions. The inquiry must remain relevant, material, fair, and directed toward clarification of truth. It must not devolve into a speech, harassment, partisan advocacy, or an announcement of a conclusion already reached. The line is clear. Senator-Judges may test the evidence here under oath and on the record, exercising the cold neutrality of an impartial judge. When constituted as an impeachment court, the Senate does not cast aside the discipline of parliamentary practice. Except where the specific rules on impeachment or the adjudicative nature of these proceedings require otherwise, the *Rules of the Senate* established parliamentary precedents and courtesies of the Chamber continue to bind every member sitting as a Senator-Judge.

Under Rule XXXIV, Sections 93 and 94 of the *Rules of the Senate*, “Deemed acts or language that offend a Senator or any public institution or third party to be unparliamentary and prohibit the use of offensive and improper language against another Senator or public institution or third party.” Henceforth, I hope Senator-Judges shall refrain from unparliamentary remarks, personal attacks, imputations of improper motive, and other language incompatible with the dignity of these proceedings and of parliamentary courtesy to other people. The Chair will at all times extend to his fellow Senator-Judges the courtesy befitting equals and reasonable latitude that serious deliberation requires. Differences in judgments and vigor in debate are to be expected and shall as far as practicable be met with patience, flexibility, and respect. Should circumstances so require, however, the Chair will not hesitate to enforce the rules of this Impeachment Court, the *Rules of the Senate*, particularly Sections 95 and 96, in this Chamber, “Firmness need not be unkind, nor courtesy come at the expense of duty.” Both serve the same end: the fair and honorable administration of justice.

Further, where a Senator-Judge is alleged to have violated the impeachment oath, Rule III, Rule XVIII, or any other applicable *Rule of the Senate*, an available institutional remedy within the Senate is the filing or referral of an ethics complaint to the Senate Committee on Ethics and Privileges in accordance with the internal *Rules of the Senate*. Under Rule X, Sections 13, 16 of the *Rules of the Senate*, the Committee on Ethics has jurisdiction over all matters relating to the conduct, rights, privileges, safety, dignity, integrity, and reputation of the Senate and its Members. Any disciplinary action remains for the Senate to determine, under Article VI, Section 16(3) of the Constitution and applicable rules. This shall not be a proper subject matter to be taken up within this Impeachment Court so as not to divert the attention from the impeachment trial against the Respondent in this case.



Accordingly, the Chair reminds all Senator-Judges: first, to observe the impartiality and political neutrality required by their oath and the *Rules*; second, to observe the parliamentary rules, precedents and courtesies of the Senate and refrain from unparliamentary, offensive or improper remarks; third, to exercise their authority under Rule XVII to question witnesses, Prosecutors and Counsels for the Respondent and the Prosecutor during the proceedings on the record instead of through commentaries in social media.

Second Ruling: Rule XVIII – Scope, Coverage, and Prospective Enforcement

Second Ruling. Rule XVIII Scope, Coverage and Prospective Enforcement. Note on the statement prospective enforcement. Having addressed the conduct expected of Senator-Judges, the Chair now turns to Rule XVIII and the persons expressly covered by it. The Chair makes this ruling, not only in response to the manifestation and motion made by Counsel for the Respondent, Atty. Sheila Sison, on August 12 and after due consideration of Attorney Ligutan's explanation, but also on the basis of the Chair's independent findings of seeming violations of Rule XVIII. These incidents come after the Chair's earlier advice to both panels to designate their respective spokespersons so that the necessary and appropriate communications may be made within the limits prescribed by the rules. Since that advice has not been fully observed, the Chair now finds it necessary to restate and strictly enforce those restrictions.

Article 18 of the *Rules on Impeachment* provides, "the Presiding Officer, the Members of the Senate shall refrain from making any comments and disclosures in public pertaining to the merits of a pending impeachment trial." The same shall likewise apply to the Prosecutors, the person impeached, and their respective counsel and witnesses. This rule exists to balance the public's right to information on matters of public concern with the need to protect the integrity of the proceedings from public prejudice. The *Rules of Court* apply only suppletorily to these proceedings. When the *Rules on Impeachment* expressly and specifically govern a matter, they control. Since Rule XVIII directly governs public comments and disclosures pertaining to the merits of the pending impeachment trial, it is for this Court, in the exercise of its authority and sound discretion, to determine whether a particular statement violates that rule.

Henceforth, with respect to prior statements or conduct covered by Rule XVIII, the Court shall extend grace, exercise liberality, and wipe the slate clean, *tabula rasa*, so-to-speak. From this point forward, however, Rule XVIII shall be strictly enforced and be given full force and effect.

Accordingly, the Chair hereby strictly enjoins all persons covered by Rule XVIII—you know who you are and, based on the records, we know who you are—from making public statements or otherwise discussing, sharing or endorsing comments pertaining to the merits of this pending impeachment trial and from engaging in trial by publicity as they directly threaten the independence of the Court, degrade the dignity of the Tribunal, and risk turning it into a circus and weaponize the media to substitute public outrage for actual evidence.

We are in receipt of the appearances of the parties. So, *ang* covered *po ng* Rule XVIII would be all those who appeared, both from the Panel of Prosecutors and the Counsel for the Panel of Prosecutors. The Chair earlier reminded the parties, designate a specific spokesperson. *Wala pong problema kung hindi naman siya kasama sa Panel. Walang problema kung hindi siya kasama sa Counsel for the Panel of Prosecutors.* The spokespersons are free to say whatever they want to say, but not—and there are limitations insofar as the Panel of Prosecutors and the Counsel for the Panel of Prosecutors is concerned.

Clearly, up to today, the spokesperson of both parties are still part of the counsel for the parties, some with more violations than others. So, without enumerating the Counsels where this rule applies, I think you know who you are, given the entries of appearance you've already made. These restrictions apply with particular force not only to Counsel for the parties but also to us Senator-Judges, and all other persons whose public statements are governed by Rule XVIII. Rule XVIII makes specific mention of the Respondent. It does not make mention of the complainants in this case, given the public nature of this case. So outside of the Senator-Judges, outside of the Counsels for the parties, particularly mentioned would be the Respondent, herself, as well as the witnesses called.

Third Ruling: Guidelines for Compliance with Rule XVIII

Third ruling. Guidelines for Compliance with Rule XVIII. To ensure a common standard the Chair now states the guidelines governing compliance with Rule XVIII. That line is crossed when

a public comment by any person covered by Rule XVIII falls within the phrase, quote "Pertaining to the merits". In this regard, jurisprudence has consistently distinguished matters going into the merits of a case from those which are merely procedural, incidental, or collateral.

In *De Leon v. Dela Llana*, GR 212277. As a technical legal term, "merits" has been defined in law dictionaries as a matter of substance in law as distinguished from matter of form and as the real or substantial grounds of action or defense in contradistinction to some technical or collateral matter raised in the course of a suit.

In *Badoy v. Magdoza-Malagar*, AM No. 22-09-16-SC, "comments on the merits of the case," may refer to the credibility of witnesses, the character of the accused, the soundness of alibis offered, the relevance of the evidence presented, and generally any other comment bearing on the guilt or innocence of the accused.

Pursuant to the *en banc* case of *In Re: Published Threats Hurlled by Attorney De Vera*, AM No. 01-12-03-SC, no party shall make public comments, statements, insinuations, or rhetorical questions that:

1. prejudice the issue to predict the outcome of the trial.
2. question pending rulings.
3. substitute media pressure for evidence.
4. promote distrust and undermine public confidence in the court by creating the impression that the court cannot be trusted to resolve the case impartially and violate the right of the parties to have their case tried fairly by an independent tribunal uninfluenced by public clamor and other extraneous influences.

For purposes of this trial, a statement pertains to the merits when viewed in the full context it evaluates—in its full context, it evaluates a disputed fact, the credibility of a witness, the relevance or probative value weight or sufficiency of a particular evidence, assessment as to the legal viability of an Article of Impeachment or a substantive defense advocates a particular disposition of the charges or announces or forecasts the ultimate vote.

Conversely, this Court recognizes the qualified privilege of a fair and true report regarding these proceedings as affirmed in the Supreme Court in *ABS-CBN v. Ampatuan*, GR No. 227004. Based on the jurisprudential standard derived from Article 354 of the Revised Penal Code, "a fair and true report," means a neutral, objective, and accurate recounting of the proceedings made in good faith without any comments or remarks.

For the guidance of all the parties concerned, the Chair now issues the procedural guidelines for violations of Rule XVIII.

The Impeachment Court will exercise its powers summarily under Rule V adhering strictly to the due process parameters set by the Supreme Court.

First, a 24-hour show-cause order: No oral accusation or press pronouncement shall precede the formal charge. Any party cited for a particular violation will be issued a written show-cause order either *motu proprio* or upon motion by either party and will be given exactly 24 hours to submit a verified written answer.

Pursuant to the Supreme Court's *en banc* doctrine in *Zaldivar v. Sandiganbayan*, GR No. 79690-707, due process in disciplinary proceedings against lawyers and parties does not require a trial-type formal hearing. The Presiding Officer will rule summarily based solely on the submitted pleadings upon the lapse of the 24-hour period subject to appeal or reconsideration by any member of the court.

Now, the burden of proof: Pursuant to *Stradcom Corp. v. Etong*, GR No. 190980 and *Webb v. Gatdula*, GR No. 194469, any punitive sanction requires this court to find that quote "a person's act must be done willfully or for an illegitimate or improper purpose". Thus, the good faith or lack thereof of the person being cited in contempt should be considered. Hence, the contemnor is presumably innocent—is presumed innocent, rather, and that the burden of proving that the contemnor is guilty of contempt lies with the movant.

For violations of Rule XVIII, the Court shall follow a two-strike rule. Violations will be met with a strict graduated penalty system:

First offense: public reprimand and admonition.

The penalty is a severe reprimand and stern admonition in open court, placed permanently on the record as a final warning.

Second offense: a monetary fine.

The penalty. Pursuant to the prescribed ceiling under Rule LXXI (71), Section 7 of the court, the court will impose a maximum statutory fine of ± 30,000 per violation, pesos that is.

Furthermore, exercising the court's inherent case management powers under Rule IV, V, VI, and VIII, to preserve the orderly proceedings, the offending lawyer or party may also be subjected to a defined prospective restriction on speaking, objecting, or examining witnesses on the floor. Each subsequent violation of Rule XVIII shall be punished the same way as a second offense, third, fourth, so on, with a fine of ± 30,000.

In all cases wherein a member of the bar is concerned, independently. Pursuant to the case of *In, Re: Almacen*, the certified incident record will be transmitted and formal referral will be made to the Office of the Bar Confidant, the Integrated Bar of the Philippines, and/or the Supreme Court for possible disciplinary sanction regarding the person's license to practice.

The court also reminds respective Counsels of the parties that CPRA Canon II, Section 19 prohibits lawyers to comment or publicize opinion pertaining to a pending proceeding in a manner that may cause prejudgment, sway public perception, influence the tribunal, or create a widespread perception of guilt or innocence. CPRA likewise requires professional responsibility on the use of social media and prohibits the dissemination of false or unverified claims or disinformation.

Rule XVIII does not, by its terms, cover outside observers or spokespersons who are not counsels of record. Such persons, however, remain subject, when applicable, to the rules on indirect contempt and if they are members of the bar, to CPRA—to the CPRA, rather.

Counsel of record must litigate their respective causes before the court, not in the court of public opinion through interviews, social media posts, or publicly generated, authorized, encouraged, or disseminated through surrogates.

Counsel cannot have their cake and eat it too. They cannot invoke the authority of this court while simultaneously seeking to influence the proceedings through extrajudicial publicity.

In fact, the Chair has in its hands certain statements to cite as an example, as examples rather, without naming names, but you know who you are, who mentioned these quotes:

Quote, "Hindi naman pinag-uusapan dito iyong kontrata. Ang pinag-uusapan dito, iyong banta. Iyong banta. Nakita ninyo sa video, may nagbanta talaga at si Vice President iyon, hindi ba?"

If this was stated by a spokesperson or any third-party observer, it would not have been a problem. But this was stated by a Counsel of record. Actually, more specifically, one of the Counsels for the Private Prosecutors.

Quote, "The country witnessed what I have been saying all along. The complaint is not supported by evidence. An impeachment proceeding should be grounded on credible evidence, not speculation, manufactured narratives, or unsupported allegations. The rule of law depends on facts, not fiction."

Quote, "Mayroon ba talagang kinausap na mamamatay-tao? Mayroon ba talagang mamamatay-tao? Napakaliwanag na ho sa sagot diyan, mayroon. Ano ho ang pruwera natin? Iyong tinatawag na admission against interest ng Vice President."

Again, to reiterate, if this was stated by any other party or person not a member of the Panel of Prosecutors, not Counsel for Prosecutors, not the Counsel for Respondent, it would have been perfectly okay. But since this was stated by one of those covered by Rule XVIII, it is covered by Rule XVIII.

Quote, "Since na-establish na namin iyong hinahanap namin doon sa talagang testigo lamang—tatlong testigo lamang, pinurgo (forego) na namin iyong ibang mga

testigo. Na-establish na namin ang gusto naming i-establish sa Article IV."

Quote, "Itong mga bank records, bank records don't lie. Hindi na ho ito puwedeng ma-spin—iyan at sabihin gawa-gawa lang ng Prosekusyon ng gobyerno itong mga usapin ng unexplained wealth ng Vice President."

Quote, "Iyon pong binabanggit ni Attorney Kapunan na courtroom open to the disciplined advocacy where evidence is tested, error is corrected, and justice is done. Within these chambers, Counsel shall be afforded reasonable latitude to present their theory of the case and vigorously test the evidence. Emotions may run high, and frustrations may arise in the course of adversarial proceedings, but neither excuses a departure from the restraint and decorum expected of officers of the court."

The case of *Navarette v. Court of Appeals, G.R. No. 124245*, mirrors the exact situation that has transpired before the court. *Quote, "With respect to the words swindlers, plunderers, stupid, and bastards, uttered by private Respondent in the course of her testimony, we are inclined to disagree that such language is too ignominious and degrading for a lawyer to say to a fellow lawyer in the courtroom."*

In *Baltao v. Falcis III, A.C. No. 14443*, the Court said, "While a lawyer is entitled to present his case with vigor and courage, such enthusiasm does not justify the use of offensive, abusive language. Language abounds with countless possibilities for one to be emphatic but respectful, convincing but not derogatory, illuminating but not offensive."

The latitude afforded to Counsel is not a license to substitute inflammatory, intemperate, or undignified characterizations for proof. Consistent with the Chair's earlier ruling, the term "scam," "mastermind," "*modus operandi*," as used during the past proceedings, stand stricken from the record. Counsel remain free to advance the factual and legal theories underlying their positions, but they must do so through evidence, reasoned argument, and court-appropriate language, not through expressions that prejudice disputed facts, attribute wrongdoing not yet established, cast offensive personalities upon others, or needlessly inflame the proceedings.

Language uttered in the presence of the Court that amounts to disrespect, offensive personalities, or misbehavior that obstructs or interrupts the proceedings may, when the applicable threshold is met, be dealt with as direct contempt under the Rules on Impeachment, with Rule 71, Section 1 of the rules applying suppletorily. Whether or not such language rises to the level of direct contempt, Counsel remain independently bound by the CPRA to observe courtesy and civility and the use of dignified language in all their professional dealings, even as adversaries.

This brings the Chair to the relevant provisions of the CPRA independently of Rule 18. Canon II of the CPRA requires every lawyer, at all times, to observe respect and courtesy in personal and professional dealings. Canon II, Section 2 further requires lawyers to act with courtesy, civility, fairness and candor towards fellow members of the bar. These duties govern how Counsel treat one another, both in and outside the courtroom. Canon II, Section 4 likewise requires dignified language in all personal and professional dealings and prohibits abusive, intemperate, offensive or otherwise improper language, whether oral or written, and whether made through traditional, electronic, mass or social media.

For the avoidance of doubt, Rule 18 applies only to the persons expressly covered therein: the presiding officer, the senator-judges, the Prosecutors, the person impeached, and their respective Counsel and witnesses.

With respect to Counsel, Rule 18 applies specifically to those who have formally entered their appearance before the Impeachment Court. Separately, when a spokesperson is a member of the bar but has not entered his or her appearance, the relevant provisions on indirect contempt under Rule 71, Revised Rules of Court, and when warranted, the CPRA shall nonetheless apply to said person. In any case, this shall be without prejudice to any recourse to Rule 71, Revised Rules of Court with respect to any person who may commit indirect contempt against the Impeachment Court not covered by Rule 18.

Accordingly, the Chair hereby declares:

1. Directing all persons covered by Rule 18 to refrain from making, sharing, endorsing, or otherwise

amplifying any public statement concerning the merits of the pending trial. Counsel for both Parties are further directed to observe the applicable provisions of CPRA.

2. Reiterates the Chair's suggestion that each party consider appointing a spokesperson who is not a member of their legal team, or if they are, for it to be clear to them that these rules shall apply to them, given that they are Counsel for the Parties strictly. If the Parties elect to retain their current spokespersons, the Rule 18 shall be strictly applied as to them.

The Court further advises respective Counsel that a violation of this order may carry consequences separate from contempt. Where the same conduct appears to violate CPRA, the Chair may direct the Clerk to transmit the certified copy of the pertinent order, transcript, and records to the Supreme Court or the Office of the Bar Confidant for whatever action the Supreme Court may deem proper. Such transmittal is a referral, not a finding or penalty of professional discipline. Disciplinary jurisdiction over members of the bar still remains with the Supreme Court.

Further, for avoidance of again, doubt, a referral through the Office of the Bar Confidant shall not rest on an alleged violation of Rule 18 standing alone. Such referral may concern other conduct outside of Rule 18 unbecoming of a member of the bar.

The Chair then issues this final warning on any willful disobedience of this order. It shall be dealt with accordingly henceforth. The ruling prescribes the standards governing future conduct and does not by itself adjudge any identified person guilty of contempt or liable for a professional violation.

The Chair closes with separate reminders to the Prosecution, Counsel for the Respondent, and Senator-Judges.

To the Prosecution, the primary duty of a public Prosecutor is not to convict, but to see to it that justice is done. This duty is expressly stated in Canon 2, Section 31 of CPRA and echoed in *Attorney Francisco v. Attorney Zuñega-Lagman*, AC 13035: "The Prosecution's object must therefore be the just resolution of the case, not victory at all costs." This obligation governs not only the evidence and arguments presented before the Court, but also Counsel's conduct outside of it.

To the Respondent and her Counsel, the corresponding duty of defense Counsel is not to secure an acquittal at all costs. In *People of the Philippines v. XXX*, GR No. 245926, the Supreme Court reminded Counsel for the accused of their fiduciary duty to provide competent, efficient, conscientious, and diligent representation. Under the same reason, Counsel for Respondent must faithfully protect their client's constitutional and procedural rights, rigorously test the Prosecution's evidence, and hold the Prosecution to the burden of proof governing these proceedings, while remaining within the bounds of the law, ethics, and the lawful orders of this Court.

To my fellow Senator-Judges, including this representation, the Chair adopts the reminder in *Webb v. De Leon*, GR Nos. 121234 and 121245. Quote: "More than convicting the guilty and acquitting the innocent, the business of this court is to assure fulfillment of the promise that justice shall be done and is done, and that is the only way for this court to obtain an acquittal from the bar of public opinion." That obligation rests upon every Senator-Judge to decide solely upon the record, under the Constitution and under our rules, and in a manner worthy of the confidence of the people to whom this Court is ultimately accountable.

Thank you, and we may proceed with the trial at hand.

PRESENTATION OF WITNESS

The Presiding Officer called on Mr. Lemuel Ortonio, Assistant Secretary and Assistant Chief of Staff at the Office of the Vice President (OVP), to the witness stand for the cross-examination. Mr. Ortonio was reminded that he would testify under the same oath administered during the previous day's proceedings.

Upon the request of Representative Chua, the Presiding Officer recognized Atty. Mae Divinagracia, Counsel for the Panel of Prosecutors.

Upon the request of Attorney Sison, the Presiding Officer recognized Attorney Ferrer, Counsel for the Respondent.

MOTION OF THE COUNSEL FOR THE PROSECUTORS

Attorney Divinagracia made the following manifestation:

Ms. Divinagracia. Your Honor, if I may be recognized.

The Presiding Officer. Yes, Attorney Mae.

Ms. Divinagracia. Your Honor, before the defense Counsel proceeds with her cross-examination, the Prosecution respectfully moves that the defense be directed to conduct its cross-examination in a non-leading question form, Your Honor.

Yesterday, Your Honor, this honorable Court declared Mr. Ortonio a hostile witness pursuant to Rule 132, Section 13 of the Rules of Court. And in so ruling, effectively, this honorable Court also declared that the interest of this witness is aligned with the Respondent.

Now, Your Honor, the permission to conduct leading—sorry, the permission to propound leading questions on cross-examination under Rule 132, Section 10(a) of the *Rules of Court* rests solely on the presumption that the interest of the witness to be cross-examined is hostile or is adverse to the cross-examiner, making it difficult for the cross-examiner to put into the mouth of the witness words that he expects to be elicited.

Now, that presumption, Your Honor, has already been overcome by the declaration of this Honorable Court, so what we expect, Your Honor, is merely cross-examination in form but not in substance. Because in substance, Your Honor, the cross-examination would effectively be like the Respondent herself cross-examining—sorry, the Respondent cross-examining or direct examining—conducting a direct examination of her very own assistant chief of staff.

Last Monday, Your Honor, we witnessed how the defense, under the guise of cross-examination, supplying testimonies to the witness, Ms. Gina Acosta, and merely expecting her to supply “yes” to each and every question, Your Honor. And that is the very evil sought to be prevented by the rule against leading questions on direct examination.

Your Honor, I understand—before I am lectured on the contents of the *Rules of Court*, I am very much aware of what the *Rules of Court* provide, but I am also very much aware, Your Honor, that under the rules of this Honorable Court, the *Rules of Court* is merely supplementary in application. And, in fact, the Presiding Officer is granted leeway to rule on every matter of evidence.

The Presiding Officer. Comment, Attorney Kristine.

Ms. Ferrer. Yes, Your Honor. Rule 132 of the *Rules of Court* does not convert a hostile witness as our own witness, Your Honor. So, therefore, we are not obliged to ask direct examination questions, Your Honor. Thank you.

Ms. Divinagracia. If I may—if I may, Your Honor.

The Presiding Officer. Short reply and in so replying, Attorney Mae, kindly cite a legal basis outside of the *Rules of Court* since you said it’s not in the *Rules of Court*.

Ms. Divinagracia. Your Honor, I am citing the very own *Rules* of this Honorable Court saying that the *Rules of Court* is merely supplementary in application. And at the end of the day, it will be the Presiding Officer who will be deciding on matters of evidence. And early in the proceedings, Your Honor, if I remember correctly, two Senator-Judges encouraged this Honorable Court to look beyond the wordings of the law and consider the intent for its application.

The Presiding Officer. Is that it, Attorney Mae?

Ms. Divinagracia. Yes, Your Honor.



RULING OF THE PRESIDING OFFICER

The Presiding Officer made the following ruling on the matter:

The Presiding Officer. Chair will make a ruling: The *Rules of Court*, although it has merely suppletory application to these *Rules*, nevertheless do apply, and the *Rules of Court* state specifically that leading questions may be asked on cross-examination without any exception nor any limitation. And as held in the *Bolos* case, there is no need to interpret the *Rules* in a case when there is no doubt, and the rule is quite specifically clear.

Number two, we already have a precedent, at least with respect to the previous witness declared as a hostile witness in the person of Gina Acosta, where the Court allowed Counsel for the Respondent to ask leading questions.

You shall be accorded the same privilege, Attorney Mae, on the part of the Prosecution, should the defense—should the Respondent, rather, present a hostile witness during the presentation of their evidence in chief. The Court shall apply the rule equally.

So ordered.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Ferrer made the following manifestation:

The Presiding Officer. You may proceed, Attorney Mae, or rather, Attorney Kristine, when you are ready.

Ms. Ferrer. Yes, Your Honor.

Before I start with my cross-examination, just to put the record straight, Your Honor, when I said they are allowed, I was referring to leading questions, Your Honor. Because the *Journal* dated August 12, 2019 would show that I was indeed asking a leading question before Attorney Kapunan objected, Your Honor. So, if we take a look at it, with all due respect, the objection was even improper at that time, Your Honor. So—but I want that issue to be closed.

The Presiding Officer. That was similarly pointed out by the Presiding Officer, Counsel.

Ms. Ferrer. Thank you, Your Honor.

Ms. Divinagracia. Sorry, Your Honor, before I proceed...

Ms. Kapunan. [off-mike] Can I answer that?

Ms. Divinagracia. ...may my colleague be recognized, Your Honor, Attorney Lorna?

The Presiding Officer. Of course, Attorney Lorna.

MANIFESTATION OF COUNSEL FOR THE PANEL OF PROSECUTORS

Atty. Lorna Kapunan, Counsel for the Panel of Prosecutors, made the following manifestation:

Ms. Kapunan. Your Honor, please. First of all, I'd like to commend the Presiding Justice—very clear. The ruling on *sub judice* is very clear, and we will take it with strict compliance, Your Honor.

The Presiding Officer. Thank you, Counsel.

Ms. Kapunan. I would like to manifest though that, again, the statement of Counsel is misleading because it was very clear. It was very clear, and the transcripts will show that the immediate phrase which led to my remark was not about leading; it was about misleading, Your Honor. If I heard it, if the whole legal profession heard it, if this courtroom heard it, if the outside audience heard it, then it must be it is what it is. She had said misleading is allowed, and I responded to that, and I'd like that to be on record, Your Honor. Let us not mislead again this Honorable Court. Thank you.

Ms. Ferrer. Your Honor—



REMARKS OF THE PRESIDING OFFICER

The Presiding Officer made the following remarks:

The Presiding Officer. The Chair already made a ruling earlier regarding this matter brought about by the Lead Counsel. In lieu of that, the Chair will simply furnish the parties with a copy of the TSN, which I will quote again for the *Record*, for the last time, and then we proceed with cross. It's already 11:00.

"Ms. Kapunan. Leading, misleading questions are not allowed on cross.

"Ms. Ferrer. They are allowed."

This is what the transcript says, and it has no reference to Attorney Ferrer stating specifically that misleading questions are allowed. And perhaps the confusion arose with respect to the TSN again not being able to capture the, perhaps, overlapping statements made by both Counsels, and we should leave it at that already, Counsels, and move on.

Ms. Ferrer. Thank you, Your Honor.

The Presiding Officer. So, when you are ready—no more manifestations, Attorney Kristine?

Ms. Ferrer. None, Your Honor. We will just—

The Presiding Officer. Proceed to cross.

Ms. Ferrer. Yes, proceed to cross.

The Presiding Officer. Attorney Mae, you shall be the Counsel for the Prosecution?

Ms. Divinagracia. Yes, Your Honor.

The Presiding Officer. Okay.

You may proceed, Ma'am, when you are ready.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

Attorney Ferrer conducted the cross-examination of the witness as follows:

Ms. Ferrer. Good morning, Mr. Ortonio.

Mr. Ortonio. Good morning, Ma'am. *Maayong buntag.*

Ms. Ferrer. Earlier, you said or you confirmed that no PFP was attached to the August 2022 letter request of the OVP to the DBM. Do you remember that?

Mr. Ortonio. Yes, Ma'am. That's correct, Ma'am.

Ms. Ferrer. Okay. And the reason for this was because at that time, it is not being required by the Joint Circular to attach the PFP to that letter.

Mr. Ortonio. Based on my understanding, Ma'am, attaching the PFP is not required to the letter request, Ma'am.

Ms. Ferrer. Thank you.

Nonetheless, when the DBM asked for documents in response to that request, you complied and submitted documents, correct?

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Ferrer. And you submitted those documents through your letter dated September 9, 2022.

Mr. Ortonio. Yes, through our transmittal letter to the DBM.

Ms. Ferrer. Thank you.

And the DBM, in fact, accepted your subsequent transmittal.

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Ferrer. And the DBM did not say that those documents, which you transmitted on September 9, 2022, were not compliant with the Joint Circular or with the law.

Mr. Ortonio. We did not receive any comment, Ma'am, regarding the submitted PFP.

Ms. Ferrer. And the DBM, in fact, did not reject your submission.

Mr. Ortonio. No, Ma'am. We did not receive any comment from the DBM.

Ms. Ferrer. And you will confirm also that the DBM even recommended the approval of your request to the Office of the President after your submission of those documents, correct?

Mr. Ortonio. Yes, Ma'am. That's correct, Ma'am.

Ms. Ferrer. And your request for additional budget was actually approved by the Office of the President.

Mr. Ortonio. That's correct, Ma'am.

Ms. Ferrer. And in the process of approving your request for additional budget, no issue whatsoever was raised by either the DBM or the Office of the President regarding the documents that you submitted.

Mr. Ortonio. We did not receive any comment regarding the submissions that we've made.

Ms. Ferrer. Thank you.

You were also asked yesterday regarding the Good Governance Program that was mentioned in the PFP for the fourth quarter of 2022. Do you recall that?

Mr. Ortonio. Yes, Ma'am.

Ms. Ferrer. And as someone who supervises the Administrative and Financial Management Office of the OVP, you confirm that the confidential funds for the fourth quarter of 2022 was requested to ensure the safe implementation of the OVP's Good Governance Program.

Mr. Ortonio. That's correct, Ma'am.

Ms. Ferrer. And the confidential funds were not used to fund the Good Governance Program in itself, but the implementation thereof.

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Ferrer. Now, we go to the 2023 PFP, which I assume you also recall. The 2023 PFP indicated the phrase "Socio-Economic Program Delivery" instead of "Good Governance Program." Do you recall that?

Mr. Ortonio. Yes, Ma'am.

Ms. Ferrer. And the Socio-Economic Program Delivery is a program of the OVP for the 2023?

Mr. Ortonio. Yes. *Iyon po 'yung parang* encompassing program title for all the projects of the OVP.

Ms. Ferrer. For the year 2023?

Mr. Ortonio. For the year 2023.

Ms. Ferrer. Again, the confidential funds for the year 2023 were not used to fund the...

Ms. Divinagracia. Objection.

Ms. Ferrer. ...Socio-Economic Program itself—

Ms. Divinagracia. This time, Your Honor, I will have to object.

Ms. Ferrer. Not yet done, Your Honor, with the question.

The Presiding Officer. Not yet?

Ms. Ferrer. Yes.

The Presiding Officer. Kindly finish your question, Counsel.

Ms. Ferrer. Yes, Your Honor.

The confidential funds for the year 2023 were not used to fund the Socio-Economic Program itself, but the safe implementation thereof?

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. Your Honor, I will have to object.

The Presiding Officer. Counsel for the Prosecution.

Ms. Divinagracia. Your Honor, we would like to—

The Presiding Officer. Before the witness answers—the answer of the witness is stricken off. Yes?

Ms. Divinagracia. Yes, Your Honor. This witness, Your Honor, based on his answers yesterday, is incompetent to testify on that. Why do I say that, Your Honor? First, this witness admitted yesterday that it was the Vice President herself who requested the confidential funds. And second, Your Honor, he himself explained that he had no participation whatsoever in the disbursement of said confidential funds. So, this witness, Your Honor, by his own admission, is incompetent to testify where the confidential funds were spent or what the confidential funds was spent on, or were spent on.

Ms. Ferrer. Quick reply, Your Honor.

The Presiding Officer. Yes, Attorney Kristine.

Ms. Ferrer. Yesterday, yes, the witness also testified that he is the Administrative and Financial Management officer—sorry, Your Honor. He took—he is the Supervising Officer of the Administrative and Financial Management Office of the OVP, and that all budgets, as a general rule, are being approved by him, Your Honor. And he, in fact, participated in the request for the confidential funds in the year 2022, Your Honor.

Ms. Divinagracia. Your Honor, if I may just make a very quick rebuttal.

The Presiding Officer. Before the Chair makes a ruling, yes.

Ms. Divinagracia. Your Honor, we've heard it straight from the horse's mouth. The statement of this witness yesterday was that, that was the general rule. Since that is merely the general rule, there are exceptions. And he also mentioned, Your Honor, that confidential funds is not among those funds that went through him that—

Ms. Ferrer. Your Honor, quick reply.

The Presiding Officer. We've dealt with this. Too many exchanges already, Counsels. If the witness knows, he may respond. And as you very well know, Attorney Mae, sometimes, a hostile witness may give a different answer on cross, which is a proper subject matter for redirect, if ever, when your time comes.

Witness may answer. Yes, Mr. Ortonio, you may respond to the question.

Mr. Ortonio. Thank you, Your Honor.

The way I understand the question is that the confidential funds was not used for any of the regular programs of the OVP under the Socio-Economic Delivery Programs for 2023. So, with that, Sir, I can say, yes, the confidential funds were not used for the purpose of the implementation of the Socio-Economic Programs of the OVP in itself.

Ms. Ferrer. And you know that information by virtue of your position, not only as the Assistant Chief of Staff but also as the administrative and—but also as the Supervising Officer of the Administrative and Financial Management Office of the OVP?

Mr. Ortonio. Yes, Ma'am. That's correct, Ma'am.

Ms. Ferrer. Thank you. The Socio-Economic Program can be found in the 2023 General Appropriations Act.

Mr. Ortonio. Yes, Ma'am.



Ms. Ferrer. Do you confirm that?

Mr. Ortonio. Yes, Ma'am. That's correct, Ma'am.

Ms. Ferrer. And it's a line item, in fact, under the 2023 GAA?

Mr. Ortonio. Yes, correct, Ma'am.

Ms. Ferrer. As the Assistant Chief of Staff of the OVP, were you made aware of the reason why the Good Governance Program was changed to Socio-Economic Program Delivery in the 2023 PFP, if you know?

Mr. Ortonio. Based on my recollection, Ma'am, there was a change in the term—in the program title from Good Governance to Socio-Economic Program in 2023 so that it encompasses—*parang mako-cover noong* title ng program 'yung all of the projects of the OVP because we—because all the programs of the OVP addresses 'yung socio-economic concerns that we—the office would want to address.

Ms. Ferrer. Thank you. Let's go to the AOMs and the Notice of Suspension. You testified that as the Assistant Chief of Staff, you drafted and signed the replies to the AOMs received by the Office of the Vice President for the fourth quarter of 2022 as well as the first to third quarters of 2023. Do you confirm that?

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Ferrer. And you also signed the OVP's response and supplemental response to the Notice of Suspension dated December 13, 2023 relative to the fourth quarter of—relative to the confidential funds for the fourth quarter of 2022. Do you confirm that?

Mr. Ortonio. Yes, that's correct, Ma'am. I'm one of the signatories.

Ms. Ferrer. And because of that, you have studied all of the AOMs as well as the Notice of Suspension?

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Ferrer. The AOMs sought clarification on the liquidation documents of the OVP, correct?

Mr. Ortonio. Yes.

Ms. Ferrer. The AOMs and the Notice of Suspension did not contain the phrase, if you recall—did not contain the phrase, "misuse of funds?" If you can recall.

Mr. Ortonio. Based on my recollection, Ma'am, I cannot recall.

Ms. Divinagracia. Your Honor, best evidence—sorry—original documents rule, Your Honor. Your Honor...

The Presiding Officer. Well—

Ms. Divinagracia. ...I know the—Your Honor.

The Presiding Officer. Counsels—

Ms. Divinagracia. I know the—

The Presiding Officer. Counsels, we can move on because before your objection, witness already said that he cannot recall.

So, move on, Attorney Kristine.

Ms. Divinagracia. Thank you, Your Honor.

Ms. Ferrer. Okay. And in that—in those AOMs, can you recall if there was any finding of misuse of funds?

Ms. Divinagracia. Already asked and answered, Your Honor.

Ms. Ferrer. I'm asking about findings, Your Honor.

The Presiding Officer. Witness may answer. She's asking about findings, Counsel.

Mr. Ortonio. Based on my understanding, Ma'am, no misuse, Ma'am, although there were certain clarifications that were made.

Ms. Ferrer. Thank you. And the Notice of Suspension also does not contain any finding or findings on the misuse of funds?

Mr. Ortonio. None that I can recall. Just some clarifications, Ma'am.

Ms. Ferrer. Thank you. And the AOMs and the Notice of Suspension were not final findings of the COA-ICFAO when it comes to the confidential funds of the OVP. Do you confirm that?

Mr. Ortonio. Yes, Ma'am. That's my understanding, Ma'am, *na* once we receive the AOMs, we are given the opportunity to send our comments.

Ms. Ferrer. Thank you. In fact, if you know, there is a pending Motion for Reconsideration before the Commission Proper relative to the Notice of Disallowance covering the confidential funds...

Ms. Divinagracia. Objection—

Ms. Ferrer. ...for the fourth quarter of 2022, if you know.

Ms. Divinagracia. Objection, Your Honor. That was—

The Presiding Officer. Before you answer—Attorney Mae?

Ms. Divinagracia. Your Honor, that's no longer covered by the direct examination. The rule for the cross-examination of hostile witnesses under Rule 132 Section 13 is different, Your Honor. What can be covered on cross-examination of a hostile witness are only those matters that were covered on direct examination. At no point was a mention of a petition for review ever made during direct examination.

The Presiding Officer. The court will give Counsels sufficient leeway on cross. The court would also like to find out about this petition for review which was discussed with the witness Gina Acosta.

Witness may answer.

Mr. Ortonio. Sorry again, Ma'am, the question, Ma'am?

Ms. Ferrer. Yes, I'll repeat my question.

If you know, there is a pending MR on the—there is a pending Motion for Reconsideration of the Notice of Disallowance covering the confidential funds for the fourth quarter of 2022.

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. Misleading, Your Honor. Your Honor, I move to strike, Your Honor, because I wasn't given enough opportunity, Your Honor, enough time to—

The Presiding Officer. Would the witness kindly wait just for a few seconds before answering?

Yes, what is the ground of the objection, Counsel?

Ms. Divinagracia. It's misleading, Your Honor, because a petition for review, it was not on—Sorry. It was not—Yes, it was not—

Ms. Ferrer. I'd rather repeat my question, Your Honor.

The Presiding Officer. Kindly repeat, Attorney Kristine.

Ms. Ferrer. Yes. Thank you.

In fact, if you know, there is a pending Motion for Reconsideration of the Notice of Disallowance covering the confidential funds for the fourth quarter of 2022 before the Commission Proper of COA?

Ms. Divinagracia. Your Honor...



The Presiding Officer. Yes, Counsel.

Ms. Divinagracia. ...again, this witness will be incompetent to testify on it, Your Honor. The participation of this witness in the filing of that petition for review has not yet been established. It wasn't even established yet, Your Honor, that this witness is even aware of the contents of the petition for review.

Ms. Ferrer. Your Honor, the Court already—

The Presiding Officer. If he knows, if he knows.

Mr. Ortonio, if you know?

Mr. Ortonio. I am aware, Your Honor, but as to the specifics on the reply to the—or the contents of the MR, I'm not very much aware of the contents.

Ms. Ferrer. Thank you. As to the first to third quarters of 2023, a Notice of Disallowance was issued by the COA dated March 31, 2026, if you know?

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Ferrer. In fact, you are the person who received the Notice on April 8, 2026, on behalf of the Vice President?

Ms. Divinagracia. Again, Your Honor, with all due respect, that's already going beyond what was discussed on direct examination, which is already—which is prescribed under Section 13, Rule 132, Your Honor. At no point did we discuss the Notice of Disallowance for the last three AOMs. The discussion during direct examination was limited to the Notice of Suspension—up to only the Notice of Suspension.

The Presiding Officer. The Chair will note the—we'll convert the objection of Counsel to a continuing objection with respect to the line of questioning of Attorney Kristine on this witness, but the Court will allow it but notes the continuing objection of Counsel with respect to these Notices of Disallowance that were issued.

Ms. Ferrer. Thank you, Your Honor.

The Presiding Officer. Mr. Ortonio, please answer.

Mr. Ortonio. Ma'am, can you repeat the question, Ma'am?

Ms. Ferrer. Okay, I will repeat. A Notice of Disallowance was issued by the COA dated March 31, 2026 relative to the first to third quarters of 2023?

Mr. Ortonio. Yes, Ma'am.

Ms. Ferrer. And you are the person who received the Notice of Disallowance on April 8, 2026, on behalf of the Vice President?

Mr. Ortonio. Yes, Ma'am, I received the document on behalf of the Vice President as the Assistant Chief of Staff.

Ms. Ferrer. Okay, thank you. Under the COA rules, if you know, since you are the one who also responded to the AOMs, under the COA Rules of Procedure, the OVP has six months from its receipt of the ND or the Notice of Disallowance to file a petition for review with the Commission Proper of the COA?

Ms. Divinagracia. Objection, Your Honor. This witness will be incompetent. Unlike the Joint Circular, Your Honor, which he specifically mentioned in his replies, Your Honor, there was no mention whatsoever of the COA rules in any of his replies.

Ms. Ferrer. If he knows, Your Honor.

The Presiding Officer. Attorney Kristine, move on to—we get your point. You can move on to your next question.

Ms. Ferrer. Okay, Your Honor. I will continue. Now, your involvement when it comes to the OVP confidential funds were, kindly confirm each item: No. 1, processing the request for the confidential funds for the fourth quarter of 2022?

Ms. Divinagracia. Misleading, Your Honor. There was no statement to that effect during the direct examination.

The Presiding Officer. Attorney Kristine—

Ms. Ferrer. Your Honor, she asked for the functions, Your Honor. She even presented the documents, Your Honor, pertaining to the...

Ms. Divinagracia. But at no point—

Ms. Ferrer. ...confidential funds of 2022, Your Honor...

Ms. Divinagracia. If I may, Your Honor?

Ms. Ferrer. ...which the witness also processed. Thank you.

The Presiding Officer. Yes, Attorney Mae.

Ms. Divinagracia. There was no—Again, that's misleading, Your Honor, because I never asked about the participation of this witness in that request. In fact, he himself explained, Your Honor, during direct examination that the request was purely the vice president's. He had no participation whatsoever in the request. He is only aware that a request was made because of that letter that he was confronted with. That's why throughout the direct examination, his answers would be limited to what is contained in the documents.

The Presiding Officer. Well, if he knows, Counsel, and again, this would be a ripe subject matter for your redirect if he all of a sudden regains—if all of a sudden, he remembers. It is a proper subject matter of redirect.

Witness may answer.

Ms. Ferrer. Your Honor, yes. I will repeat my question. Your involvement when it comes to the OVP confidential funds were, number one, processing the request for the confidential funds for the fourth quarter of 2022, as evidenced by your letter dated September 9, 2022 to the DBM.

Mr. Ortonio. Ma'am, just a quick clarification, ma'am. When you say processing, ma'am, in terms of—

Ms. Ferrer. Handling the request.

Mr. Ortonio. Yes, ma'am, through my office, Ma'am, we transmitted the request to the DBM.

Ms. Ferrer. Okay. Signing of vouchers.

Mr. Ortonio. That's correct, Ma'am, signing of vouchers.

Ms. Ferrer. Signing of checks.

Mr. Ortonio. Yes.

Ms. Ferrer. Signing of responses to the AOMs and the notice of disallowance.

Mr. Ortonio. Yes, Ma'am.

Ms. Ferrer. And acting as liaison when it comes to the submission of the liquidation documents to the ICFAO.

Mr. Ortonio. Yes, Ma'am.

Ms. Ferrer. Okay. Thank you.

You were not involved in the drafting of the quarterly liquidation reports of the confidential funds, correct?

Mr. Ortonio. No, Ma'am.

Ms. Ferrer. That work belongs to Ms. Gina Acosta, right?

Mr. Ortonio. As of my understanding, Ma'am, yes, ma'am.

Ms. Ferrer. You were not involved in the disbursement of confidential funds. Is that right?

Mr. Ortonio. No, Ma'am.



Ms. Ferrer. And also, the recording of confidential expenses.

Mr. Ortonio. No, Ma'am.

Ms. Ferrer. The recording of confidential expenses is being done by Ms. Gina Acosta.

Mr. Ortonio. As of my understanding, Ma'am, yes.

Ms. Ferrer. And you were not also involved in the confidential operations of the OVP.

Mr. Ortonio. No, Ma'am.

Ms. Ferrer. And you have not met any of the confidential informants of the OVP.

Mr. Ortonio. No, Ma'am.

Ms. Ferrer. Neither did Ms. Gina Acosta meet any of them, if you know.

Mr. Ortonio. That I would have no personal knowledge, Ma'am.

Ms. Ferrer. Okay. Thank you.

As far as you know, the confidential informants only liaise with Colonel Lachica, if you know.

Mr. Ortonio. That is of my understanding, Ma'am.

Ms. Ferrer. And the reason being is that the information as to the identity of the informants is classified and sensitive under the joint circular, specifically item 3.28.

Ms. Divinagracia. Objection, Your Honor. This witness has already repeatedly testified that he had no participation in the disbursement of the confidential funds, Your Honor, and yet, defense counsel, with all due respect to her, keeps on propounding questions related to the disbursement.

The Presiding Officer. And his answer, Counsel, will always be in the negative because he has been consistent in regard to not having any participation with the disbursement. I think that has been established, Attorney Kristine, that he has no participation in the disbursement.

Ms. Ferrer. Actually, Your Honor, my question was not about the disbursement, Your Honor. If I can repeat it, Your Honor.

The Presiding Officer. Kindly repeat the question, Attorney Kristine.

Ms. Ferrer. Thank you.

You answered earlier that as far as you know, the confidential informants only liaise with Colonel Lachica. That was your answer earlier. And the reason being, if you know, is that the information as to the identity of the informants is classified and sensitive under the JC.

Ms. Divinagracia. It's the same banana, Your Honor.

Ms. Ferrer. Can I just finish my question, Your Honor?

The Presiding Officer. Finish the question, Counsel.

Ms. Ferrer. Yes. And I will repeat, Your Honor. The reason being is that the information as to the identity of the informants is sensitive under the joint circular.

Ms. Divinagracia. Your Honor, I raise the same objection, Your Honor. This witness already testified that he has no participation in the disbursement and implementation of the confidential funds. Now, defense counsel is asking the reason why the informants did not directly...

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Chair will make a ruling. Chair will sustain the objection but not on that ground, but on the ground that it is misleading because the witness did not say that it is of a sensitive nature. But that, if I remember correctly, it was confidential. That was the statement made by Attorney Lachica to him *na hindi niya sasabihin* because it was confidential.

Ms. Ferrer. Yes, Your Honor. We will no longer push the question. Thank you.

The Presiding Officer. Move on to your next point, Attorney Kristine.

Ms. Ferrer. I am already done, Your Honor. Thank you.



The Presiding Officer. Are you ready for your redirect, Counsel?

Ms. Divinagracia. Your Honor, may I just have 10 minutes to organize my redirect, Your Honor, given the number of questions that were propounded on cross-examination?

The Presiding Officer. With the permission of the senator-judges, so as to save on time, while we are giving Attorney Mae some time—you will have the similar amount of time, Attorney Kristine, if you so desire for your re-cross—I will in the meantime allow senator-judges to interject, in the *interregnum*, to save on the Court's time. I can see the hand of Senator Sotto.

QUESTIONS OF SENATOR-JUDGE SOTTO

Senator-Judge Sotto. Thank you, Mr. Presiding Officer.

This is actually just one question to Mr. Ortoño. And this is out of my curiosity. Earlier you confirmed that all admin and finance matters, *dumadaan sa iyo*.

Mr. Ortonio. That is correct *po*, Your Honor.

Senator-Judge Sotto. Correct. Also, you said that you were the head of HR in Davao LGU.

Mr. Ortonio. That is correct *po*, Your Honor.

Senator-Judge Sotto. Correct.

In this regard, I am sure you would know, what is the employment status of Colonel Lachica in the Office of the Vice President?

Mr. Ortonio. Colonel Lachica *po* is the group commander of the VPSPG. And he is not an employee of the OVP, but he has an order coming from the AFP designating him as the group commander for the Vice-Presidential Security and Protection Group.

Senator-Judge Sotto. Therefore, designation.

Mr. Ortonio. There is an—

Senator-Judge Sotto. You are saying he is not employed. He does not have any employment status in the Office of the Vice President.

Mr. Ortonio. Yes *po*, Your Honor.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer.

Ginoong Testigo, *nabasa ninyo po ba nang mabuti at naintindihan ang nilalaman ng joint memorandum circular, sir?*

Mr. Ortonio. Good morning, sir.

Yes, Your Honor, I was able to read it and based on my understanding, I was able to understand the contents of the JMC.

Senator-Judge Tulfo (E). *Noong kayo po ay pinadalhan na ng notice of disallowance ng COA, nabasa ninyo rin po ba kung bakit kayo po pinadalhan ng notice of disallowance at kailangan ninyo pong sagutin iyong kanilang AOM?*

Mr. Ortonio. Yes *po*, for the 2022 and 2023.

Senator-Judge Tulfo (E). 2022. So *naintindihan po ninyo na sinasabi doon ng COA na while confidential funds allow for the payment of rewards to civilian information, iyong COA po has ruled that this cannot be structured as broad distribution of medicines, food, grocery packs or household goods. And that, kung ito po ay reward dapat po specific targeted financial payouts lamang po at hindi po puwedeng ibili ng mga gamot o ng mga upuan bilang reward. Naintindihan ninyo po ba iyon?*

Mr. Ortonio. Sir, based on my understanding, sir, that is the initial observation coming from the COA. And we were able to provide comment on that on our replies.

Senator-Judge Tulfo (E). *Tama. Pero alam ninyo po ba na ang Office of the Vice President is a civilian office? Ibig sabihin, hindi po sila military. Therefore, hindi po sila maaring mag-possess ng formal, national security or law enforcement mandate. Sabi po ng COA guideline, sir, again, specifically, the operational intelligence gathering is the domain of military, police and specialized enforcement bodies. Hindi po kasama ang VPSPG po roon. Did you know that?*

Mr. Ortonio. Sir, based on my understanding, sir, *sa pagkakaintindi ko po sa JMC* is that the confidential funds is allowed for civilian agencies, sir, and in coordination with the different law enforcing agencies. *Iyon po iyong pagkakaintindi ko po.*

Senator-Judge Tulfo (E). *Iyon po ang pagkakaintindi ho ninyo. Pero iba po iyong sinasabi po ng COA sa inyo kaya po kayo may notice of disallowance. Kaya po sinasabi ng COA at inisyu (issue) po sa inyo formal notice of disallowance na 73.3 million ng OVP December 2022 confidential spending, iyon po ang dahilan, na major reason for disallowance was the ± 24.93 million spent on medicines and ± 34.857 million spent on various goods were improperly categorized under the guise of intelligence rewards. Alam ninyo po ba iyon kaya pinadalhan po kayo ng COA, sir?*

Mr. Ortonio. Sir, based on what I can recall po, sir, on the notice of disallowance that was sent to our office, what they required, sir, was that the submission of an intelligence report to support the payment of those rewards. So, *iyon po iyong pagkakaintindi ko regarding sa letter.*

Senator-Judge Tulfo (E). So, *nakita po ninyo na may problem, sir. May problem kaya kayo pinagpapaliwanag.*

Mr. Ortonio. There is an issue po, sir, that we needed to comply.

Senator-Judge Tulfo (E). There is an issue. Okay. *Panghuli na lamang, Mr. Presiding Officer, one last question.*

The Presiding Officer. You may proceed.

Senator-Judge Tulfo (E). Sir, *sino po ang mga nag-imbento at saan galing iyong mga alias po na iyon? Is that Colonel Lachica o sa grupo ninyo, sila Chippy McDonald, sila Pusa, Aso, et cetera, may—sila Pagong. Who invented those?*

Mr. Ortonio. Sir, I do not know, sir. Number one, sir, I cannot answer, sir, if invented, sir. But as to the AR, Sir, I cannot provide information, Sir, because I do not have any participation in the implementation of the confidential activities.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. *Maraming salamat. Magandang umaga, Ginoong Ortonio.*

Mr. Ortonio. Good morning, sir.

Senator-Judge Pangilinan. Yes. *Puwede ninyo bang ipaliwanag iyong naging proseso, ano? Dahil base sa testimonya ni Acosta, ni Ginang Acosta at sa inyo, iyong testimonya ninyo, from December 2022 to September 2023, a total of ± 122 million in cash was distributed to, perhaps, hundreds of informants. After doing surveillance work, was given rewards and they purchased medicines. Tama po?*

Mr. Ortonio. Based on the information that was shared to me by the security officer, sir—

Senator-Judge Pangilinan. That is correct. *Iyon iyong nangyari?*

Mr. Ortonio. Based on the information, sir.

Senator-Judge Pangilinan. *Bakit gamot? Would you know?*

Mr. Ortonio. Sir, I would not know, sir. But based on the information that was shared to me by the security officer, those were the, *parang iyon po iyong representation o iyon daw po iyong inilapit noong mga informants or agents that they needed at the time.*

Senator-Judge Pangilinan. *Bilang reward?*

Mr. Ortonio. Yes, as a form of reward.

Senator-Judge Pangilinan. *Pero pera ang ibinigay sabi ninyo, ano?*

Mr. Ortonio. Yes, sir. Based—

Senator-Judge Pangilinan. *Pero hindi ninyo alam kung talagang gamot ang binili? Dahil—*

Mr. Ortonio. I would have no idea, sir, on the implementation, sir.

Senator-Judge Pangilinan. *Dahil walang resibo? Acknowledgment receipt, mayroon.*

Mr. Ortonio. Acknowledgment receipt, sir.

Senator-Judge Pangilinan. You were head of the BA—the BAC, bids and awards?

Mr. Ortonio. Bids and awards committee, sir.

Senator-Judge Pangilinan. So, familiar *ka pagka* regular purchases, *dapat may bidding ang medicines.*

Mr. Ortonio. Correct, sir.

Senator-Judge Pangilinan. *Hindi ba?*

Mr. Ortonio. Yes, sir.

Senator-Judge Pangilinan. So, *kung iyon ang ipinaliwanag sa iyo, sa loob ng siyam na buwan, hindi mo ba tinanong o hindi mo ba sinita na dapat pagka medicines, dapat bidding? “Kasi ako ang head ng Bids and Awards. Alam ko iyan, eh.”*

Mr. Ortonio. Sir, I was only made aware of the concern regarding the medicines and food supply, sir, when the AOM—when we received the AOM, which was around October of 2023, Sir. So, that was *parang* almost nine months after the 2022 *na* implementation for the confidential funds.

Senator-Judge Pangilinan. Okay. So, *hindi mo alam kung bakit gamot, ano? Sinabi lang sa iyo, ano? Pero bilang in charge ng financial services, iyon na nga, hindi mo rin talaga alam kung iyong 122 million ay gamot ang binili?*

Mr. Ortonio. For that purpose, sir, I would have no personal knowledge, sir.

Senator-Judge Pangilinan. Yes. *At sa usapin naman noong supplies. At sa usapin naman noong supplies—sabi, “purchase of supplies.” Anong supplies iyon? Would you know?*

Mr. Ortonio. I do not know—I am not familiar, sir, *kung ano po iyong mga supplies na ni-request po, sir.*

Senator-Judge Pangilinan. So, *hindi mo rin alam na iyong ± 112 million worth of goods. Anong goods iyon?*

Mr. Ortonio. Again, sir, I would have no personal knowledge, Sir, on the specifics of the supplies, sir.

Senator-Judge Pangilinan. You know, you have two master’s degrees; you are a graduate of Ateneo. Would you consider this usual?

Mr. Ortonio. As far as—*sa pagkaka—*

Senator-Judge Pangilinan. I mean, now that you know—*hindi ba, sabi nga nila, “Hindsight, 20/20.” Vision is always 20/20 in hindsight. So, ganitong para sa surveillance, binigyan ng gamot na 122 million iyong mga informants, sila na lang daw ang bibili ng gamot. Is this usual in terms of using government funds? And you being a BAC head?*

Mr. Ortonio. Based on my understanding *po, sir, at saka sa pagkakaintindi ko po, sir, it went through the—parang the process that is allowable by law. So, iyon—*

Senator-Judge Pangilinan. So, it is usual? For you, it is usual? That is just my question. Do you find this usual? And you say yes or no? So, you find this process *na medicines ang binibigay bilang reward sa mga informant pero hindi medicines, pera; sila bibili ng medicines, 122 million in a period of nine months, for you that is usual?*

Mr. Ortonio. *Kung sa pagkakaintindi ko po, sir, and based po sa understanding ko po sa JMC, sir, I would say so, Sir.*

Senator-Judge Pangilinan. Okay. No further questions at this time.

The Presiding Officer. Thank you.

With the permission of—the next in line is Senator-Judge Tulfo. But with your permission, Honorable Tulfo—thereafter, is Senator Villanueva, the Senate President, Senator Hontiveros, Senator Lacson.

The 10 minutes of Attorney Mae is up. Attorney Mae, can you now proceed with your redirect?

Again, without prejudice to Attorney Kristine, asking for a similar time for her recross should she require it.

Attorney Mae, you may proceed when you are ready.

REDIRECT EXAMINATION OF THE COUNSEL FOR THE PANEL OF PROSECUTORS

Ms. Divinagracia. Good morning, Mr. Ortonio.

Mr. Ortonio. Good morning, Ma'am.

Ms. Divinagracia. Okay. *Kanina* on cross examination, *sinabi mo na sa pagkakaalam mo, hindi required na i-attach ang PFP sa request for confidential funds. Tama ba?*

Mr. Ortonio. Yes *po*.

Ms. Divinagracia. Okay. Now, may we confront you with Section 3.24 of the Joint Circular 2015-01. Can you kindly read it for the record?

The Presiding Officer. Assisting counsels may approach and show the witness the JC 2015-01, the relevant provision thereof.

Ms. Divinagracia. Can you kindly read for the record what 3.24 of the joint circular states?

Mr. Ortonio. 3.24, "Physical and Financial Plan - refers to the plan approved by the head of office, in the case of NGAs and LGUs and by the Board of Directors in the case of GOCCs, supporting the request for funds for CE and IE containing the estimated amount per project, activity, and program."

Ms. Divinagracia. Okay. *Nabasa ninyo po ba iyan bago kayo sumagot kanina? Familiar po kayo sa provision na iyan?*

Mr. Ortonio. I have to be honest, ma'am, *na* I cannot remember this one, ma'am.

Ms. Divinagracia. Okay. *Ngayon, hindi rin ikaw ang nagpadala or nag-prepare ng October 22, 2022 letter. Tama ba?*

Mr. Ortonio. Sorry, ma'am? Oct—

Ms. Divinagracia. *Hindi rin ikaw ang nagpadala ng—*

Mr. Ortonio. *Ng?*

Ms. Divinagracia. Sorry—August 22, 2022 letter. *Tama ba?*

Mr. Ortonio. It is through our usual *na* routing process, ma'am.

Ms. Divinagracia. And also, *sabi mo kahapon*, it was the decision of the vice president to request the confidential funds. *Tama ba?*

Mr. Ortonio. Yes, as the head of agency, ma'am, I would understand that she has the authority to request for the said funds, ma'am.

Ms. Divinagracia. And *siya rin iyong nag-sign doon sa August 22, 2022 letter. Tama ba?*



Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. *Siya iyong pumirma? Tama ba?*

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. Okay. So, *hindi mo alam kung paano in-interpret ng bise presidente iyong provision na iyong binasa.* You cannot say with certainty how the Vice President interpreted that provision?

Ms. Ferrer. Objection, Your Honor.

The Presiding Officer. Before you answer, Mr. Ortonio, yes, Attorney Kristine.

Ms. Ferrer. Witness is incompetent to read the state of mind of the Vice President, Your Honor.

Ms. Divinagracia. That's precisely the point, Your Honor. That's precisely what I'm asking the witness, to confirm that he cannot say with certainty the frame of mind of the Vice President if she was also thinking that the PFP is not required for the request.

The Presiding Officer. Applying the rules equally, if he knows, witness may answer.

Ms. Divinagracia. Thank you, Your Honor.

Mr. Ortonio. Again, ma'am, for the question *ulit*, ma'am.

Ms. Divinagracia. So *hindi mo rin masasabi*, you cannot say with certainty *na ganiyan din ang interpretasyon ng Bise Presidente doon sa provision na binasa mo nang ipinadala ang sulat* to the DBM dated August 22, 2022. *Tama ba?*

Mr. Ortonio. I cannot, ma'am.

Ms. Divinagracia. But you are sure—you can confirm that the Vice President is a lawyer. *Tama ba?*

Mr. Ortonio. Yes, ma'am, she is a lawyer.

Ms. Divinagracia. *Sinabi mo rin kanina na iyong confidential funds*, to your knowledge, *hindi lang ito ginastos sa regular programs ng good governance.* *Tama ba?*

Mr. Ortonio. Ma'am, what I meant, ma'am, is that—

Ms. Divinagracia. Sorry, Mr. Ortonio, let me just clarify. *Sinabi mo kanina na* to your knowledge, *iyong confidential funds* were not spent on the regular programs under the good governance program. *Tama ba?*

Mr. Ortonio. That's correct, ma'am.

Ms. Divinagracia. *Iyan din iyong sinabi mo para sa socioeconomic delivery programs. Ang sabi mo, iyong confidential funds hindi ginamit sa regular programs ng socioeconomic delivery programs ng OVP.* *Tama ba?*

Mr. Ortonio. That's correct, ma'am.

Ms. Divinagracia. *Pero* you will confirm *na iyong sa PFP, hindi naka-indicate* that the confidential funds will not be used—will be used not for the regular programs of the good governance program of the OVP. *Tama ba? Walang qualification doon sa PFP. Tama ba? Ang nakalagay lang doon, good governance program.*

Mr. Ortonio. Yes, ma'am. Based on the document that I saw, ma'am, it only indicated the program titles.

Ms. Divinagracia. Okay. *Tama. So hindi naka-indicate doon na gagamitin ang confidential funds para sa programa* other than the regular programs under the good governance program. *Tama ba?*

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. Same is true for the 2023 PFP. *Ang nakalagay lamang doon*, socioeconomic delivery. *Walang* qualification. *Tama ba?*

Mr. Ortonio. Based on the document that was presented, ma'am.

Ms. Divinagracia. Yes. *Hindi rin sinabi na* the confidential funds for 2023 *ay gagamitin* for programs other than the regular programs of the socioeconomic delivery programs of the OVP. *Tama ba?*

Mr. Ortonio. Sorry, ma'am. Can you repeat the question, ma'am, to be clear?

Ms. Divinagracia. *Hindi rin sinabi sa* PFP for 2023 that the confidential funds of the OVP will be used for programs other than the regular programs under the socioeconomic delivery program of the OVP?

Mr. Ortonio. Based on the document, ma'am, it does not specifically indicate.

Ms. Divinagracia. Okay. And you would confirm that the seeming confusion would have been avoided had the Office of the Vice President only indicated the specific programs under both the good governance programs and the socioeconomic delivery programs in the PFP. *Tama ba?*

Ms. Ferrer. Objection. Objection.

The Presiding Officer. What is the ground, Attorney Kristine?

Ms. Ferrer. Speculative, Your Honor.

Ms. Divinagracia. Your Honor, again, the question does not—

The Presiding Officer. The witness is smart enough. Mr. Ortonio, you may answer, if you know.

Mr. Ortonio. Can you repeat the question, ma'am?

Ms. Divinagracia. The confusion would have been avoided or would have been averted, *maiwasan sana ito kung iyong OVP nilagay doon sa dalawang PFP* for 2022 and 2023 *iyong* specific each and every program that will be funded by the confidential funds for both years. *Tama ba?*

Ms. Ferrer. Objection. Objection, Your Honor.

Ms. Divinagracia. It's already ruled upon, Your Honor.

The Presiding Officer. What's the objection, Attorney Kristine?

Ms. Ferrer. The witness did not say there was a confusion, Your Honor. That was misleading.

Ms. Divinagracia. I didn't say, Your Honor, that this witness mentioned confusion.

Ms. Ferrer. But her question says, "So the confusion should have been avoided," Your Honor. The question is misleading.

Ms. Divinagracia. Because, Your Honor, there was an inconsistency, Your Honor. Earlier—

Ms. Ferrer. She is interpreting and making conclusions out of the answer of the witness, Your Honor.

The Presiding Officer. Attorney Mae, kindly reform. Yes, the witness did not say that he was confused.

Ms. Divinagracia. Okay.

The Presiding Officer. Reform. You can get to the same point through another way.

Ms. Divinagracia. Okay. So, Mr. Ortonio, *kung nilagay iyong* each and every program that will be funded, *inisteyt* (state) *doon sa dalawang PFP* *iyong* particular programs *na paggagamitan* ng confidential funds, *wala sanang* question *kung saan ito ginamit*. *Tama ba?*

Ms. Ferrer. Objection, Your Honor. Same objection, Your Honor. Actually, misleading, *kasi*, "*wala sanang* question." He did not say that there were questions on the confidential funds.

Ms. Divinagracia. Then I will drop the "*sana*," Your Honor.

The Presiding Officer. Mr. Ortonio—if I may, Counsels. Mr. Ortonio, *bakit hindi inilagay doon sa PFP iyong particular noong Good Governance at Socio-Economic Program at hindi ito bahagi doon sa orihinal o regular na budget ng OVP?*

Mr. Ortonio. Sir—

The Presiding Officer. *Sa pagkakaalam mo?*

Mr. Ortonio. Thank you, Your Honor. On the question, sir, on *kung bakit hindi nilagay*, sir, I would have no personal knowledge, sir, on why, since the document was prepared by our special disbursing officer.

The Presiding Officer. *Sa paggawa ng sagot sa AOM, sa palagay mo ba kung inilagay ninyo iyon, hindi na masasama sa AOM iyon?*

Mr. Ortonio. Based on my understanding, sir, it could have helped, sir, to clarify.

The Presiding Officer. Okay. Your witness, Counsel.

Ms. Divinagracia. Okay. Mr. Ortonio, yesterday and today, *paulit-ulit mong sinasabi na wala kang participation sa disbursement and implementation of the confidential funds. Tama ba?*

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. So, *hindi mo rin alam kung talagang saan ginamit iyong confidential funds, kung anong programa dinisbers (disburse) ito. Tama ba?*

Ms. Ferrer. Objection. Objection, Your Honor.

The Presiding Officer. What is the ground, Attorney Kristine?

Ms. Ferrer. Not covered by the cross.

The Presiding Officer. Let's give her sufficient leeway, Counsel. This is one of the questions in the minds of the senator-judges, just to clarify. You may answer it, Mr. Ortonio.

Mr. Ortonio. No, I would not have any personal knowledge.

Ms. Divinagracia. So, *hindi mo rin alam*, based on your personal knowledge, *na iyong confidential funds ay hindi ginastos sa regular programs under the Good Governance Program. Tama ba? Kasi wala kang—sabi mo, wala kang participation, wala kang personal knowledge kung saan dinisbers (disburse) iyong confidential funds. Tama ba?*

Mr. Ortonio. Based on my understanding, ma'am.

Ms. Divinagracia. *Wala ka ring personal knowledge kung paano in-implement ang confidential funds. Tama ba?*

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. So, *hindi mo rin masasabi*, based on your personal knowledge, *na iyong confidential funds ay ginastos sa mga programa other than the so-called regular programs of the Good Governance Program?*

Ms. Ferrer. Objection, Your Honor.

The Presiding Officer. What is the ground, Kristine?

Ms. Ferrer. Misleading, Your Honor. The witness did not say that the confidential funds were spent on the good governance programs of the OVP.

The Presiding Officer. That was not the point, Attorney Kristine. Witness may answer.

If the Presiding Officer may. Mr. Ortonio, *kung wala kang personal na kaalaman kung paano ginastos iyong confidential fund, eh 'di wala ka ring personal na kaalaman kung ginastos sa regular na programa ng OVP iyong confidential fund?*

Mr. Ortonio. I do not have any personal knowledge, sir, on how the confidential funds was implemented, sir.

The Presiding Officer. At all, *kung saan napunta iyon, wala kang alam?*

Mr. Ortonio. No, sir.

The Presiding Officer. *Kung napunta man sa tama o mali, madumi o malinis, wala kang alam?*

Mr. Ortonio. I would have no personal knowledge, sir.

The Presiding Officer. Okay. Your witness, Counsel.

Ms. Divinagracia. Earlier, *tinanong ka din bakit biglang—bakit nag-change iyong program, the PPAs for the 2023 PFP. When I say PPAs, I am referring to the projects, plans, and activities. Tinanong ka kanina kung bakit iyong programs, plans, and activities under the 2023 PPA naging Socio-Economic Delivery Program na dati under the 2022 PFP ito ay Good Governance Program. Tama ba?*

Mr. Ortonio. Yes, ma'am. The way I understand the question, ma'am—

Ms. Divinagracia. Wait. Wait lang. *Ito iyong tanong, Mr. Ortonio. Ang sabi mo kanina, nag-change ng PPA sa 2023 PFP para ma-cover ang mas marami pang programa. Tama ba?*

Mr. Ortonio. Ma'am, I'll clarify, ma'am.

Ms. Divinagracia. Wait. Mr. Ortonio, please, just answer my question with a yes or no.

Mr. Ortonio. I answered, ma'am—

Ms. Ferrer. Your Honor.

The Presiding Officer. Let the witness answer, Attorney Mae.

Ms. Ferrer. Thank you.

Mr. Ortonio. I answered the question earlier, ma'am, in the context of why there was a change from good governance to socio-economic delivery in the context of what is reflected in the GAA. So, that is how I answered it, ma'am.

Ms. Divinagracia. Okay. *Pero you will confirm na wala ka ring participation doon sa pag-identify—Sa pag-prepare ng PFP, mayroon ka bang participation?*

Mr. Ortonio. For the PFP, ma'am, no.

Ms. Divinagracia. *Wala. Okay.*

Kanina, tinanong ka rin tungkol sa petition for review na finayl (file) ng OVP sa COA. Tama ba?

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. And you will confirm that this petition for review was denied by the COA. *Tama ba?*

Mr. Ortonio. Yes, ma'am ...

Ms. Divinagracia. Yes.

Mr. Ortonio. ... and subject for motion for reconsideration, ma'am.

Ms. Divinagracia. *Ibig sabihin nang dineny (deny) ito ng COA, iyong COA, it stood pat with its earlier decision, with its earlier findings. Tama ba?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. If he knows, Counsel.

Mr. Ortonio. Yes, ma'am, but then again, subject for the filing of motion for reconsideration.

Ms. Divinagracia. Yes.

Sinabi mo din kanina na wala kang participation sa drafting ng liquidation; wala kang participation sa drafting ng request; wala kang participation—sorry—wala kang participation sa drafting ng liquidation documents; wala kang participation sa disbursement; wala kang

participation sa recording kasi ang may gawa nito ay si Ginang Acosta, hindi ba? Naaalala mo iyon?

Mr. Ortonio. Yes, ma'am. That's correct.

Ms. Divinagracia. You will confirm *na ikaw, ang chief of staff, at ang Vice President ang three top officers ng OVP. Tama ba?*

Mr. Ortonio. As assistant chief of staff, ma'am, yes.

Ms. Divinagracia. *Kaya kayong tatlo, kayo iyong top three officers ng OVP: assistant chief of staff, chief of staff, and the Vice President herself. Tama ba?*

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. Okay. *Sinabi mo na wala kang alam tungkol doon sa mga bagay na iyon. At sinabi rin ng chief of staff na wala rin siyang alam tungkol sa mga bagay na ito. So, tama bang sabihin na among the three of you ...*

Ms. Ferrer. Your Honor, please.

Ms. Divinagracia. ... *si Vice President lang ang nakakaalam?*

The Presiding Officer. Let her finish the question. Witness will not answer the question until the objection is ruled upon by the Chair.

Finish your question, Attorney Mae.

Ms. Divinagracia. Done, Your Honor.

The Presiding Officer. Attorney Kristine, what's your objection?

Ms. Ferrer. Misleading, Your Honor, and vague. First of all, the chief of staff has not yet testified with regard to the confidential funds.

The Presiding Officer. Well, Attorney Kristine, the Court took judicial notice of the proceedings in the House of Representatives where the chief of staff, Attorney Lopez, testified. And I went through the TSN, and such statements were made along those lines by the chief of staff of the vice president.

Witness may answer.

Mr. Ortonio. Ma'am, can I be clarified with the question? Can you repeat the question, please?

Ms. Divinagracia. Okay. *Kanina, sinabi mo na ang top three officers ng OVP ay ikaw, as assistant chief of staff, ang chief of staff, at ang Vice President herself. Tama ba?*

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. *Ngayon, sinabi mo na wala kang alam tungkol sa drafting ng liquidation reports. Tama ba? Wala ka ring alam sa disbursement ng confidential funds; wala ka ring alam tungkol sa recording relative to the confidential funds. Tama ba?*

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. *Ito rin iyong naging posisyon ng chief of staff. Wala rin siyang alam tungkol sa mga bagay na ito. Ngayon, tama bang sabihin na dahil kayong tatlo ang top three na officers or officials ng Office of the Vice President, si Vice President lamang ang may alam tungkol dito sa mga bagay na ito?*

Ms. Ferrer. Objection.

The Presiding Officer. What's the ground, Kristine?

Ms. Ferrer. Speculative, Your Honor.

Ms. Divinagracia. If he knows, Your Honor. Again, Your Honor, we don't want to belabor this point, Your Honor, but Defense Counsel keeps bringing us back to this point, Your Honor. The question does not become speculative simply because it's couched in a what-if question, Your Honor. And besides, Your Honor, this honorable Court has already ruled and has already directed the witness to answer, Your Honor.

Ms. Ferrer. Your Honor, the Counsel would want the witness to speculate on the state of mind of the Vice President.

Ms. Divinagracia. No, Your Honor. Let me answer it in two points, Your Honor.

The Presiding Officer. Please. Please, Counsel, briefly.

Ms. Divinagracia. Yes. It's not speculative, Your Honor, because there was already an admission that they are the top three officials of the OVP. Now, the answer would be based on that admission, so it's not speculative. The question would only be speculative if it's completely conjectural, Your Honor. And second, Your Honor, the only reason I repeated the (question) because the witness himself requested me to repeat; but prior to me repeating the question, the Honorable Presiding Officer has already made a ruling, Your Honor. We will be squandering away time if every time I would repeat the question, the Defense Counsel would all of a sudden invoke another ground for objection.

The Presiding Officer. We're about to break for lunch, so let's end it on a good note. Finally, Attorney Kristine.

Ms. Ferrer. I will revise my objection, Your Honor, incompetent.

The Presiding Officer. Allow me, Counsels.

Base sa testimonya mo, Ginoong Ortonio, wala kang alam sa paggastos, pag-liquidate, pag-disburse ng confidential fund. Tama?

Mr. Ortonio. Yes. That's correct, Your Honor.

The Presiding Officer. *Sabi ni Gina Acosta, wala rin siyang alam. Tama? Alam mo ba iyon, na wala rin siyang alam sa paggastos ng confidential fund at kung paano ito na-liquidate? Would you know that?*

Mr. Ortonio. Based on what I have read—

The Presiding Officer. *Iyong testimonya niya.*

Mr. Ortonio. Yes, sir.

The Presiding Officer. *Base sa pagkakaalam mo, alam ba ng Vice President kung paano ito ginastos?*

Mr. Ortonio. The way I understand it, sir, as the head of agency, I would understand that she knows the implementation, sir.

The Presiding Officer. Yes. So, *si Colonel Lachica, alam din siyempre.*

Mr. Ortonio. Yes, sir, as the security officer, I would assume—

The Presiding Officer. *So sa loob ng opisina ng OVP, si VP Sara as head of agency lang ang nakakaalam; ikaw bilang assistant chief of staff, iyong chief of staff mismo walang alam. At si Colonel Lachica na, ayon sa katanungan ni Senator-Judge Sotto kanina lang, na hindi naman bahagi ng opisina ng OVP?*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. Okay.

Ms. Divinagracia. That would be all for redirect, Your Honor.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Thank you, Mr. Presiding Officer.

Kayo po ay nag-reply sa AOM from COA for the Check No. 244027 dated December 20, 2022. Ano po iyong proseso na ginagawa ninyo once kayo po ay nakatanggap ng AOM or disallowance?

Mr. Ortonio. Good morning, Your Honor. When we receive AOMs within the office, once we

receive it, we inform, of course, the chief of staff and, of course, also the head of agency of the AOM. We send them a copy for their information.

Senator-Judge Tulfo (R). Do you investigate?

Mr. Ortonio. Once *mayroon na pong* instruction *kung sino po iyong magko-conduct ng* review, then that's the time po that we conduct the necessary review for the—

Senator-Judge Tulfo (R). Do you ask questions?

Mr. Ortonio. Yes, sir, to the concerned *na mga* divisions.

Senator-Judge Tulfo (R). What questions do you ask, for example?

Mr. Ortonio. Usually, sir, we ask point per point on what is—

Senator-Judge Tulfo (R). Point per point?

Mr. Ortonio. Point per point, what is indicated in the AOM so that we can also address the concerns point by point.

Senator-Judge Tulfo (R). Very good.

Now, *isa sa mga* AOM *ay* observation ng COA, *kulang sa mga dokumento*. Halimbawa, itong *sinabi rito*, 170,000—at *marami ito* by the millions—170,000 for the payment of reward, “medicines.” Did you not ask *ano ba talaga ito? Anong klaseng medisina ang binili? Kasi ang pagkakaalam ko, mayroon kayong pera* from confidential funds *binigay ninyo doon sa* informant *para siya na bumili ng medisina*.

Mr. Ortonio. Yes, sir. *Iyon po iyong—*

Senator-Judge Tulfo (R). Did you ask *kung anong medisina ang binili noong—para sa anong medisina bibilhin noong* informant *iyong pera?*

Mr. Ortonio. When the time *na nag-consult po ako* with the security officer, sir, I did not ask any more on the specifics, but I asked on *paano po iyong naging process nila* in terms of *noong pag-release noong* funds for the informants or for the agents.

Senator-Judge Tulfo (R). Sir, you are very highly educated person from prestigious schools. Come on, it doesn't make sense. It defies logic. *Tatanungin mo dapat*, to protect Sara, *kasi* very close *kayo kay* Sara. “*Teka muna, anong klaseng mga medisina ang binili? Nasaan iyong reseta?*” *Kasi, malay mo, baka naman hindi ibinili ng medisina, baka ibinili ng drugs o whatever, baka may nagbulsa noong pera. Iyon kasi ang kailangan ng COA, hindi ba? Resibo.*

Mr. Ortonio. At that time *po*, sir, when I consulted with the security officer, sir, I was not able to ask any more on the details, sir.

Senator-Judge Tulfo (R). Why not? It is part of your job. In fact, *pumirma ka eh, doon sa pag-reply mo sa* AOM.

Mr. Ortonio. I asked, sir, *kung ano iyong* process—

Senator-Judge Tulfo (R). *So pumirma kang nakapikit? Yes, sir?*

Mr. Ortonio. No, sir, *hindi naman po na nakapikit*, sir, because *nagtanong naman po ako sa* security officer *namin*, sir, on how it was released or implemented on the ground. So, *kung ano po iyong naibigay na* information, sir, *iyon po iyong nailagay ko sa pag-draft po ng* reply to the AOM.

Senator-Judge Tulfo (R). *Hindi mo rin itinanong bakit pare-pareho iyong signature sa different names ayon sa NBI forensic? Tapos pare-pareho iyong handwriting sa different names, parang iisang tao lang ang nag-fill up. Mayroon pa nga, walang signature at nag-receive ng* by the hundreds of thousands each? You didn't ask? *Bakit hindi mo tinanong, “Bakit Pusa? Bakit ito si Pagong?” Pinagtatawanan tayo ng tao, et cetera. Why? Did you not ask?*

Mr. Ortonio. Sir, at that time, sir, *hindi ko po nakita iyong mga* acknowledgment receipts, sir. I was only made aware of the acknowledgment receipts, sir, when it was already shown during the HOR *na mga* hearing, sir.

Senator-Judge Tulfo (R). *Hindi, kasi pag nagtanong ng attachment, then, hindi ba, sabi mo you ask questions point by point, you investigate? Then, kinuha mo sana iyong mga dokumento and then ipinakita sa iyo and then nagtanong ka, point by point, like you said. And then, you are a very educated person, you should have asked a lot of questions to satisfy doon sa niri-request ng COA. Kasi tulad niyan, "Pusa, Pagong," imposibleng hindi mo nakita iyan. Tapos, pare-pareho iyong pirma sa isang—same handwritings para sa napakaraming pangalan at saka iisang pirma sa napakaraming pangalan according to the NBI forensic. You didn't ask?*

Mr. Ortonio. Sir, at that time *po*, sir, I did not see the acknowledgment receipts.

Senator-Judge Tulfo (R). Come on, sir. Like I said, *napakatalino mong tao sa credentials mo. Dating professor, Ateneo, UP, hindi ba?* And then, now, *parang—sorry, sir, ha—parang nagmaang-maangan ka.* Again, is it blind loyalty? Thank you *po*.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Mr. Witness, *sinita po kayo ng COA doon sa pag-approve ninyo ng disbursement voucher, ano, iyong P125 million. At ang explanation ninyo, delegated po sa inyo pag more than one million, is that correct?*

Mr. Ortonio. Yes, *po*, sir. There is an office order, sir.

Senator-Judge Villanueva. *Ano ho iyong extent of your authority? Ministerial approval or may responsibility din kayo na i-determine if this is lawful, properly supported, and authorized expenditure bago kayo pumirma?*

Mr. Ortonio. There is also a level of checking, sir, if documentary attachments have been complied, sir, prior to the affixing my signature, sir.

Senator-Judge Villanueva. Like?

Mr. Ortonio. *Kung sa mga disbursement voucher, sir, dapat mayroong mga supporting documents on the reasons for the request po, sir.*

Senator-Judge Villanueva. Like?

Mr. Ortonio. One of which, sir, say, for example, there is an activity design, sir, which indicates *kung ano iyong mga activities to be done and the expenses for those activities.*

Senator-Judge Villanueva. Okay. *Noong winidro (withdraw) po iyong salapi— P125 million, sabi po ni Ms. Acosta you accompanied her. Alam ninyo po na after noong winidro iyong salapi, deretso pinleys (place) ito sa custody ni Colonel Lachica? Alam ninyo po iyon?*

Mr. Ortonio. At that time, sir, I did not know, sir, *kung ano iyong arrangement nila ni Ms. Gina Acosta, sir. I just accompanied her to the bank, sir, as per her request.*

Senator-Judge Villanueva. So, you have no knowledge?

Mr. Ortonio. I have no knowledge *po*, sir.

Senator-Judge Villanueva. You are the disbursement officer, you do not have any knowledge, so *wala ding* written authority, *ano?* Anyway, *doon sa testimony ni Ms. Acosta, sabi po niya si Colonel Lachica was not bonded, yet the confidential funds were released to him because he was supposedly na siya iyong mag-implement ng activities on the ground. As assistant chief of staff, as disbursement voucher signatory, officially approving the DVs, aware po ba kayo dito sa ganitong arrangement?*

Mr. Ortonio. I had no personal knowledge *po*, sir, on that arrangement, sir.

Senator-Judge Villanueva. *Kasi ho, kung ganoon, parang sinasabi ninyo na parang ministerial duty lang po iyong sa inyo although kanina sabi ninyo hindi po. Kasi why would you allow that, 'no?*

Then next question, Asec, *kayo po mismo iyong pumipirma doon sa November 30, 2023 OVP response to COA stating that all transactions involving the P125 million were valid, proper, and*

regular and explaining that the P40 million medical and food aid was given to persons conducting nationwide surveillance operations. *Bago po ninyo ginawa, may factual representation po ba kayo sa COA? Ano po iyong inyong ginawa, iyong personal po ninyo na vineripay (verify) bago ninyo po ito ginawa?*

Mr. Ortonio. Sorry, sir, the question again, sir? Just to be clarified *lang*, sir.

Senator-Judge Villanueva. *Ulitin ko po iyong question. Noong nag-respond po kayo doon sa COA that all transactions involving the P125 million were valid, proper, and regular, in-explain ninyo din po iyong P40 million medical and food aid was given to persons conducting nationwide surveillance operations. Bago po ninyo ito ginawa, iyong factual representation po na iyon sa Commission on Audit, ano po iyong inyong personal na ginawa to verify all of these?*

Mr. Ortonio. I consulted *po* our security officer on how the implementation was done on the field, sir. And what was relayed to me, sir, *iyon po iyong inilagay ko sa draft for the reply*, sir.

Senator-Judge Villanueva. *Ano po iyong hiningi ninyo?*

Mr. Ortonio. Information, sir, on how it was implemented, sir. So, I asked *kung*—if I can remember it right, sir, because it was quite a long time ago, sir. I asked *kung paano* *iyong* manner of release of the funds on the ground, sir, and especially *iyong sa* medical and food aid, sir. And what was relayed to me, sir, was that the funds were released to the informants or the agents through cash and then based on their representation, that they would need these funds for the purchase of medicines and supplies.

Senator-Judge Villanueva. *Binanggit ninyo po doon sa AOM na lumabas, na notice of suspension, wala pong nakalagay na misuse of funds, right? So, ano po iyong ginawa po ninyo after po lumabas ito despite the fact na wala ho kasing nakalagay na misuse of funds pero nakalagay po doon iyong lacking of the documentary records to support iyong ginawa po ninyo? Ano po iyong inyong ginawa para ma-correct, for example, from AOM to—before ma-issue iyong notice of suspension, before ma-issue iyong notice of disallowance? Ano po iyong inyong ginawa to suffice iyong hinahanap po ng Commission on Audit?*

Mr. Ortonio. Based *doon po sa mga* points that were raised in the AOM, we provided answers for those and—

Senator-Judge Villanueva. Before you answer— you agree *na iyong binanggit ninyo po, ano*, there is no such word “misuse of funds” *doon sa mga* AOM, NS, *at* ND?

Mr. Ortonio. Yes, sir.

Senator-Judge Villanueva. Okay, *sige po*.

Mr. Ortonio. So, we provided the documents that were required of us, sir, in support on the issues or concerns raised by the Commission on Audit.

Senator-Judge Villanueva. And apparently, *hindi po sila pumayag at hindi sila nag-agree* because *kulang pa rin po iyong* documents?

Mr. Ortonio. Based *po sa* NS, sir, ND, sir, *mayroon pa pong mga hinihingi ang* COA, sir. And that’s why, as a response to the ND, sir, we also supplied those information.

Senator-Judge Villanueva. Yes, *salamat po. Salamat po. Gusto ko lang ho sabihin* that indeed *iyong* confidentiality may limit what can be disclosed to the public, but it cannot erase *iyong* accountability within the government.

Salamat po, Mr. Witness.

INQUIRY OF REPRESENTATIVE LUISTRO

Representative Gerville Luistro inquired whether Colonel Manaros Boransing was already in the premises, as the Prosecution intended to present him immediately after Mr. Ortonio’s re-cross examination. The Presiding Officer replied that the Colonel had not yet arrived and that the matter would be addressed upon resumption of the proceedings at 1:00 p.m.

SUSPENSION OF TRIAL

With the permission of the Body, the trial was suspended.

It was 12:12 p.m.

RESUMPTION OF TRIAL

At 1:04 p.m., the trial was resumed.

INSTRUCTION OF THE PRESIDING OFFICER

The Presiding Officer instructed the Clerk of Court, through OSAA, to have the witness, Mr. Ortonio, take the witness stand. He reminded the witness that he remained under the same oath previously administered to him, to which the witness affirmed. He then called on Counsel for the Respondent, Attorney Ferrer, to conduct the re-cross-examination.

RE-CROSS-EXAMINATION OF THE WITNESS

Attorney Ferrer conducted the following re-cross-examination:

Ms. Ferrer. Good afternoon, Mr. Ortonio.

Mr. Ortonio. Good afternoon, ma'am. *Maayong hapon.*

Ms. Ferrer. Earlier, you were asked to confirm that the PFPs for the fourth quarter of 2022 and the first to third quarters of 2023 did not reflect that the confidential funds were used for the safe implementation of the OVP's good governance program for 2022 and social economic delivery for 2023...

Ms. Divinagracia. Misleading, Your Honor.

Ms. Ferrer. ...can you recall that?

[Answer of Mr. Ortonio was stricken off the record]

Ms. Divinagracia. Misleading, Your Honor. Move to strike, Your Honor.

The Presiding Officer. Why is it misleading, Atty. Mae?

Ms. Divinagracia. Because, Your Honor, during the redirect examination, I never mentioned safe implementation.

The Presiding Officer. Reform, Counsel. I don't recall the word "safe" as well. But it was somewhere along those lines, I believe.

Ms. Ferrer. Yes, Your Honor. But, actually, that was what registered to me. But can I continue, Your Honor?

The Presiding Officer. You may continue, Atty. Kristine.

Ms. Divinagracia. But, Your Honor, we move to strike the answer of the witness.

The Presiding Officer. So stricken off. Reform your question, Atty. Kristine.

Ms. Divinagracia. Thank you, Your Honor.

Ms. Ferrer. I'm showing you the PFPs for 2022 and 2023.

Your Honor, they are Exhibits ...

The Presiding Officer. Assisting Counsels may approach.

Ms. Ferrer. ... D-1-23-OVP for the PFP for the year 2022 and D-1-49-OVP for the year 2023. Do you have copies of those PFPs?

Okay. Let's go to the 2022 PFP. Now, I'm directing you to the second column of the PFP. It says there, safe implementation—let's go to the 2022 PFP—it says there, "safe implementation of the OVP initiatives and confidence-building." Do you see that?

Mr. Ortonio. Yes, ma'am, based on the documents presented.

Ms. Ferrer. And that is under the heading "expected outcome."

Mr. Ortonio. Yes, ma'am.

Ms. Ferrer. Okay. Now, let's go to the year 2023, CY 2023 PFP. Now, I'm directing you also to the second column. It says there, "safe implementation of OVP initiatives and confidence-building." Do you confirm that?

Mr. Ortonio. Yes, ma'am.

Ms. Ferrer. And that is under the heading "expected outcome."

Mr. Ortonio. Yes, ma'am.

Ms. Ferrer. Okay. You were also asked about the supposed submission of the PFP together with your letter or the Vice President's letter to the DBM dated August 22, 2022. Earlier, you were asked. And, in fact, you were asked also to refer to Item 3.24 of the Joint Circular. Do you recall that?

Mr. Ortonio. Joint Circular. Yes, ma'am.

Ms. Ferrer. Now, do you also recall that in a letter dated September 15, 2022, the DBM requested that you submit the PFP in relation to your request for additional funding?

Mr. Ortonio. Yes, ma'am, that's correct, ma'am.

Ms. Ferrer. In fact, in compliance with such letter of the DBM, you submitted a copy of the PFP through your letter dated September 19, 2022.

Mr. Ortonio. Yes, ma'am, we transmitted that report, ma'am.

Ms. Ferrer. And as earlier mentioned during your cross examination, your submissions to the DBM—Okay. I will rephrase, Your Honor.

As earlier mentioned, the DBM recommended the approval of your request for confidential funds to the Office of the President.

Mr. Ortonio. That's correct, ma'am.

Ms. Ferrer. In fact, the Office of the President approved the issuance of confidential funds ...

Ms. Divinagracia. Objection, Your Honor.

Ms. Ferrer. ... to the OVP.

The Presiding Officer. Let her finish the question, Counsel.

Are you done, Attorney Kristine?

Ms. Divinagracia. Objection, Your Honor.

The Presiding Officer. What is the objection, Counsel?

Ms. Divinagracia. That was not covered by the redirect anymore, Your Honor.

The Presiding Officer. In the discretion of the Court, we will grant latitude, Counsel. Overruled. Witness may answer.

Ms. Ferrer. Thank you, Your Honor.

Earlier also, you were asked whether you knew if confidential funds were used in the regular activities of the OVP. Do you confirm that?

Mr. Ortonio. Yes, I was asked earlier.

Ms. Divinagracia. That was misleading, Your Honor. The question earlier—First, Your Honor, we move to strike because the question is misleading. What I asked was whether or not this witness has personal knowledge, not just any kind of knowledge, Your Honor; personal knowledge.

Ms. Ferrer. Okay, I will rephrase my question using—

The Presiding Officer. Kindly rephrase, to include personal knowledge.

Ms. Ferrer. Yes, Your Honor, using the wordings of the Counsel.

You confirmed earlier that you were asked whether or not you have personal knowledge as to whether the confidential funds were used in the regular activities of the OVP.

Mr. Ortonio. Yes, ma'am.

Ms. Ferrer. As the one who drafted the AOMs and the—the Response to the AOMs, and the response to the notice of suspension, was there any findings in the AOMs which—relative to the supposed use of the confidential funds in the regular activities of the OVP?

Ms. Divinagracia. Misleading, Your Honor.

Ms. Ferrer. If you can recall.

Ms. Divinagracia. Misleading, Your Honor, because this witness could not have drafted the AOMs. The AOMs came from the Commission on Audit.

The Presiding Officer. She corrected herself, Counsel—the response to the AOM.

Ms. Ferrer. Yes, Your Honor.

The Presiding Officer. Witness may answer.

Ms. Ferrer. So, I will repeat my question, Your Honor, for clarity.

The Presiding Officer. Proceed, Attorney Kristine.

Ms. Ferrer. As the one who drafted the responses to the AOMs, as well as the Notice of Suspension, if you can recall, was there any findings of the COA relative to the supposed use of the confidential funds in the regular activities of the OVP?

Ms. Divinagracia. Not covered by the redirect, Your Honor. I never touched upon the AOMs during the redirect examination.

The Presiding Officer. Same ruling, Counsel. You may register, and the Court notes a continuing objection along these lines of questioning by the Counsel. Witness may answer.

Mr. Ortonio. Based on the documents that we have received from COA, there was no any indication or any comment that the confidential funds were used for regular programs.

Ms. Ferrer. Nothing further, Your Honor. Thank you.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. Thank you, Mr. Presiding Officer.

Mr. Ortonio, *nakita ko sa mga records na anim na beses kayong pumirma ng reply to COA. Itong anim na letters na ito, ito ba ay nabasa, nakita, ipinakita kay Vice President Sara?*

Mr. Ortonio. All the replies, sir, that were drafted were also sent to our Vice President for her information—for her reference and review.

The Senate President. So, *alam niya itong mga replies to COA.*

Mr. Ortonio. Yes, sir.

The Senate President. Okay. *And narinig ko rin sa inyong testimony na kinausap ninyo si Acosta at si Colonel Lachica.*

Mr. Ortonio. Yes, sir.



The Senate President. *At base sa mga information nila, iyon ang inilagay mo sa letter replies ninyo to COA. Tama?*

Mr. Ortonio. Yes, sir. That is correct, Your Honor.

The Senate President. *Paki-narrate nga sa amin—Ilang beses ninyo pala na-meet si Colonel Lachica?*

Mr. Ortonio. Sir, *sa mga replies po*, sir, I cannot exactly remember how many times, sir, but I can say more than once or twice, sir. I was able to meet Colonel Lachica to ensure *na* I get the information from him, sir, and that I will be able to draft properly the replies to the AOMs.

The Senate President. So, *mga* once or twice?

Mr. Ortonio. *Mga* around once or twice, sir. The exact number, sir, I cannot remember anymore, sir, because *maraming beses—maraming* documents *po* *iyong* *ni-review*, sir.

The Senate President. *Pakikuwento nga sa amin kung ano exactly iyong kaniyang sinabi sa inyo para ma-draft ninyo itong reply.*

Mr. Ortonio. For the AOMs, sir—I'll try to recall, sir, some of the issues that were raised on the AOM. So, say for example, sir, on the inform—on the AOM comment regarding the use of the confidential funds for medical and food supply, sir, so *tinanong ko po siya kung paano po* implement on-ground *iyong pagbigay ng* medical and food supplies to the informants and the agents. So, from there *po*, sir, *na-mention niya*, sir, *na* the funds were released to the informants and agents based on their representation that those funds will be used for the purchase of medical and food supplies.

The Senate President. *Ikinuwento ba niya sa iyo na siya mismo ang nagbigay sa mga informants?*

Mr. Ortonio. Sir, *wala na—hindi ko na po ma-recall*, sir, if he mentioned specifically if *siya po ang nag-distribute* personally, sir, *doon sa* on the ground, sir, *or* implemented the release on-ground.

The Senate President. *Pero ang kuwento niya sa iyo cash ang ibinigay sa informants, hindi* medical supplies or other supplies?

Mr. Ortonio. That's correct *po*, Your Honor.

The Senate President. *Ikinuwento niya ba sa iyo na mayroon ba siyang kasamang iba sa pagbibigay nitong cash? Kasi libo-libo iyong acknowledgment receipts.*

Mr. Ortonio. *Hindi niya po nakuwento* specifically, sir, although if I can recall, sir, based on my recollection, *mayroon po siyang na-mention na mayroon po siyang mga—hindi ko alam kung ano iyong term niya*, sir, but *mayroon siyang mga* people who go directly on the ground, sir.

The Senate President. *Pero kinonfirm (confirm) niya na kinuha—kinonfirm niya sa iyo na kinuha niya iyong P500 million?*

Mr. Ortonio. Five hundred million, sir?

The Senate President. Yes, in four different tranches.

Mr. Ortonio. For the different fund, sir. It is of my assumption, sir, *na siya po iyong napagbigyan noong* funds, sir.

The Senate President. In four different tranches?

Mr. Ortonio. Four different tranches, sir.

The Senate President. Okay. *Nasabi ninyo ba sa kaniya na—tinanong ninyo ba sa kaniya na iyong mga ibang acknowledgment receipts ay questionable iyong mga apelyido?*

Mr. Ortonio. Sir, at the time *po*, sir, I was not able to see the acknowledgment receipt, sir, because in the AOM, sir, the AOM indicated that we submit the DEPs or the documentary evidence of payment, sir. So, I was not able to see it, sir. So, *noong ibinigay po sa akin ni* Ms. Gina Acosta *iyong mga* DEP, sir, it was already in a sealed box, sir, and then we submitted that together with our reply to COA.

The Senate President. *Paano niya raw dinistribyut (distribute) iyong mga pera? Kasi 500 million ito, thousands and thousands of acknowledgment receipts. Paano niya ikinuwento sa inyo na dinistribyut niya itong mga pera? Sino itong mga informants niya? Kasi kayo gumawa ng reply to the AOM.*

Mr. Ortonio. Reply, sir.

The Senate President. So, I would assume *na tinanong ninyo iyong methodology ng pagdi-distribute niya.*

Mr. Ortonio. Sir, based on my recollection *lang*, sir, he mentioned *na iyon nga*, sir, *mayroon siyang mga* people, sir, who worked on the ground. That is only the extent of the information I can recall, sir, when I had a consultation with Colonel Lachica.

The Senate President. *Iyong pagpili ng informants, natanong ninyo ba kung paano at iyong relevance nitong informants dito sa inyong confidential operation?*

Mr. Ortonio. Sir, I did not ask anymore, sir, because it was not the subject of the AOM, sir. So, I was not able to check on him on that matter, sir.

The Senate President. *Pero iyong DEP is—iyong documentary evidence of payment, subject iyan ng AOM, tama?*

Mr. Ortonio. For submission, sir, we were required to submit the documentary evidence of payment, sir.

The Senate President. Yes. But did you—*tinanong ninyo ba sa kaniya kung paano niya nakukuha itong DEPs?*

Mr. Ortonio. Sir, I did not ask anymore, sir. I just requested for the copies—for the DEPs, sir, so that I can already submit it, sir, *doon sa COA* as an attachment to the AOM reply.

The Senate President. *Paano kung iyong DEPs peke? Paano kung iyong kaniyang narration sa iyo ay hindi totoo?*

Mr. Ortonio. Sir—

The Presiding Officer. *Paano kung ganoon ang situation?*

Mr. Ortonio. Sir, at the time, sir, because he was designated as our security officer, sir, I—

The Senate President. Designated by?

Mr. Ortonio. By the head of office, sir,...

The Senate President. Which is the vice president?

Mr. Ortonio. ...Sara Z. Duterte, sir. So, I—it is of my—*sa tingin ko po*, sir, *na maayos naman po iyong pagkakatrabaho ni Colonel Lachica doon sa pag-dispense niya ng duty* as the security officer.

The Senate President. Last question, Mr. Presiding Officer.

Bakit parang nagkukuha ako, buong-buo iyong tiwala ninyo sa kanya at kinuha ninyo lahat ng information at iyon ang ginamit ninyo sa inyong reply to the COA? Bakit buo iyong—nakita ko bakit buo iyong tiwala hindi kayo nag-probe ng mga additional questions considering na kayo ang nag-justify nito sa COA at kayo pumirma dito sa COA. So, bakit parang kung ano sinabi niya iyon na lang ang inilagay ninyo sa inyong reply?

Mr. Ortonio. Well, first, sir, it is because he is the security officer, sir. So, I believe, sir, *na siya iyong* the best person that can provide the information. And then second, sir, as the security officer sir, he was designated by our head of agency which I believe also gave the trust and confidence to him to implement the activities. So, *kung ano po iyong na-mention ni Colonel Lachica sa akin* during the time when I checked or asked for questions, *iyon po iyong pinagbasehan ko* for the drafting of the reply.

The Senate President. Thank you very much, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po, Mr. Presiding Officer.*

Mr. Ortonio. *tama po ba na lahat ng ginagawa ng OVP tungkol sa confidential funds — request, amounts, justifications, use at pagsagot sa mga puna ng COA, tama po ba na lahat ng ito ay dinesisyunan at inaprubahan ni VP Duterte?*

Mr. Ortonio. Based on the replies, ma'am, yes, I was able to provide a copy to the head of agency, ma'am. Again, being the head of agency, ma'am, I provided her with the information.

Senator-Judge Hontiveros. *At base doon, dinesisyunan at inaprubahan niya ang lahat ng ito?*

Mr. Ortonio. Yes, and from that time, ma'am, we signed off on the document for submission to the Commission on Audit.

Senator-Judge Hontiveros. With the last touch or final sign-off being that of VP Duterte?

Mr. Ortonio. Yes, ma'am, being the head of agency, ma'am, we sought her approval on it, ma'am.

Senator-Judge Hontiveros. *At sang-ayon po ba kayo na bilang iyong ganoong head of agency na si VP Duterte ang responsable at pinakaresponsible sa lahat ng iyan?*

Mr. Ortonio. Well, being the head of agency, ma'am, I believe that *kailangan niyang malaman lahat ng mga nangyayari*, and I know, ma'am, *na si Ma'am Inday* really wants to know details, especially on implementation of the different activities that we do in the office. So, it is really—*mayroon talagang* involvement in terms of ensuring that things are properly implemented within the office.

Senator-Judge Hontiveros. And based on that knowing, *batay sa kaalamang iyon, siya ang pinakaresponsible sa kabuoang iyan?*

Mr. Ortonio. Based on that, ma'am, being the head of agency, ma'am, I would say so, ma'am.

Senator-Judge Hontiveros. All right. *Gaano katagal ninyo na po kilala si VP Duterte?*

Mr. Ortonio. *Siguro*, ma'am, more than—more than 10 years, ma'am. I started working together with her, ma'am, in 2008.

Senator-Judge Hontiveros. *At saan po at—oh, so almost 20 years pala. So, at saan po at paano ninyo siya nakilala?*

Mr. Ortonio. *Nakilala ko po siya*, ma'am, *bilang vice mayor sa Davao City*, ma'am. And then, at the time, ma'am, when they were looking for several staff members for the Office of the Vice Mayor, I submitted an application, ma'am.

Senator-Judge Hontiveros. *At magkakilala rin po ba kayo ni Ms. Gina Acosta kahit bago po kayo nakipagtrabaho sa isa't-isa sa OVP?*

Mr. Ortonio. I knew of Ms. Gina Acosta, ma'am, during my employment, ma'am, with the *Sangguniang Panlungsod* during the time *ni Ma'am Inday* as the vice mayor.

Senator-Judge Hontiveros. So, prior *sa OVP* *magkakilala at magkatrabaho na po kayo sa Davao?*

Mr. Ortonio. *Kilala ko po si Ms. Gina, nakikita ko po siya sa Sangguniang Panlungsod.*

Senator-Judge Hontiveros. And then, what about *po si Colonel Lachica? Magkakilala na rin po ba kayo at magkatrabaho bago kayo magkatrabaho sa OVP?*

Mr. Ortonio. I first knew of Colonel Lachica, ma'am, when I was already with the Office of the Vice President, ma'am.

Senator-Judge Hontiveros. So, would you say *po na nasa circle of trust kayo ni VP Duterte, kayo nina Ms. Gina Acosta, Colonel Lachica, at kayo nga po?*

Mr. Ortonio. Well, Ma'am, I can only answer for myself, Ma'am. In terms of working relationship, Ma'am, I would say that I have the trust and confidence of the VP in terms of doing duties that are assigned to me.

Senator-Judge Hontiveros. *Pero sasabihin ninyo ba na walang trust at confidence si VP Duterte kay Ms. Gina Acosta?*

Mr. Ortonio. I cannot categorically say, Ma'am, but I would say, Ma'am, *na* could be, *baka mayroon po*, considering that there are also duties and functions that are being entrusted to them.

Senator-Judge Hontiveros. In fact, *kung mas candid pa po tayo, madali naman siguro kahit from an observation at katra—hindi lang observation, dahil malapit ninyong katrabaho, na may trust and confidence.*

What about *po si* Colonel Lachica? *Sasabihin ninyo ba na walang trust and confidence si VP Duterte sa kaniya?*

Mr. Ortonio. Considering, Ma'am, that he is the Group Commander of the Vice Presidential Security and Protection Group, Ma'am, I would say, Ma'am, I would say that she may have the trust and confidence.

Senator-Judge Hontiveros. Again, *kung mas kaya nating maging candid*, of course, *lalo na kung Security Officer ng isang public official*, of course, *may trust and confidence*. Otherwise, *hindi ipagkakaloob ang kaligtasan sa kamay niya.*

Lastly *po na paksa* for now, *paano pong—and winding up*, Mr. Presiding Officer—*paano pong isinama kayo ni Ms. Gina Acosta doon sa pag-encash noong mga tseke? Halimbawa, kung kailangan po ni Ms. Acosta ang taga-buhat noong bag, noong cash, bakit po kayo in particular ang isinama niya?*

Mr. Ortonio. I cannot answer, Ma'am, *kung bakit ako po ang naisama ni Ms. Gina Acosta*. But at that time—

Senator-Judge Hontiveros. *Hindi lang naisama, pero sabi ninyo, hiniling niya sa inyo na kayo iyong sumama.*

Mr. Ortonio. Yes, Ma'am.

Senator-Judge Hontiveros. So, *bakit po?*

Mr. Ortonio. So, when she requested me, Ma'am, to accompany her, Ma'am, *sinamahan ko naman po siya*, Ma'am, because at that time *na naitanong niya na magpapasama siya*, I was available *naman*, Ma'am. And because of the request, Ma'am, I accompanied her going to the bank.

Senator-Judge Hontiveros. Ah, so *simpleng nagkataon*, *walang reason kung bakit kayo iyong isinama niya*, you were the person who—the warm body who happened to be available?

Mr. Ortonio. Again, Ma'am, I cannot say *kung ano iyong pinaka-reason behind po ni Ms. Gina*, but when she requested me that I accompany her, Ma'am, I said "yes," Ma'am, noong nag-request siya.

Senator-Judge Hontiveros. Winding up on this topic, Mr. Presiding Officer. *Sinamahan ninyo rin po ba si Ms. Gina Acosta noong iabot kay Colonel Lachica iyong pera?*

Mr. Ortonio. No, Ma'am. I actually did not—I was not aware, Ma'am, of the arrangement, Ma'am, with Colonel Lachica, Ma'am.

Senator-Judge Hontiveros. Actually po, on this topic, Mr. Presiding Officer—

The Presiding Officer. Kindly wind up.

Senator-Judge Hontiveros. Winding up, Mr. Presiding Officer.

Nabanggit ninyo po na alam ninyo iyong Joint Circular on confidential and intelligence funds. Hindi ninyo po ba naisip na violation ang pagbibigay ni Ms. Acosta kay Colonel Lachica ng bulto-bultong cold cash?

Mr. Ortonio. Ma'am, based on—because again, Ma'am, I was not aware of the arrangement,

Ma'am. But when I was doing the replies, Ma'am, to the AOM and, of course, I also checked on the JC, Ma'am, the *pagpili po ng mga*—ng person to implement the different activities, of the confidential activities, and to designate a Security Officer is indicated also in the JMC, and is within the authority of the head of agency. So, *iyon po iyong pagkakaintindi ko* at that time. So, with that, Ma'am, I saw it that it was a—the manner of how the funds were handled, Ma'am, was following a—parang a regular process, Ma'am, based on the JMC, based on my understanding.

Senator-Judge Hontiveros. But then, again, Mr. Ortonio, in closing, *iyong* close reading ng JMC, *na sabi ninyo nga* familiar kayo, would show *na hiwalay pa sa usapin* ng implementation, *iyong paghawak noong pondo ay doon lamang sa isang katulad ni* Ms. Gina Acosta. *At hindi puwedeng ipagkatiwala bilang* accountable officer siya, *hindi puwedeng ipasakamay sa iba.*

Mr. Ortonio. *Ang* understanding *ko po*, Ma'am, yes, the disbursement is with the Special Disbursing Officer, but the implementation, Ma'am, was done through the Security Officer.

Senator-Judge Hontiveros. Of course. *Hindi ko po tinatanong iyong* implementation. *Tinatanong ko po iyong* violation ng JMC *na alam ninyo noong tinurn-over* (turn) *ni* Ms. Gina Acosta *ang bulto-bultong* cash kay Colonel Lachica. Something that I simply think should not and could not have escaped your eyes, Mr. Ortonio.

Mr. Ortonio. Yes, Ma'am. Again, Ma'am, based on the—for the 2022, Ma'am, I could not recall that that was a concern, Ma'am, in the AOMs, Ma'am. Although for the 2023, Ma'am, *na* Notice for Disallowance, it is subject for reply also on our end, Ma'am. And we are currently drafting also a reply for that one.

Senator-Judge Hontiveros. And of course, given the strict internal controls *na siguro kayo iyong pinaka may* oversight *sa opisina*, even prior further communications from COA, after *iyong unang pagpansin nila sa* last quarter 2022, *e di dapat nag-exert kayo ng higit na pagbantay* the next three quarters of 2023.

Mr. Ortonio. Ma'am—

The Presiding Officer. Kindly wind up, Senator-Judge Risa.

Senator-Judge Hontiveros. Yes, winding up now, Mr. Presiding Officer.

Mr. Ortonio. Your Honor, we were able to receive the Audit Observation Memo for 2022 on October 4 of 2023. So, we got the observations *po*, Ma'am. And we already got the AOM, Ma'am, and *iyong* three quarters for 2023 was already implemented.

Senator-Judge Hontiveros. Again *po*, Mr. Ortonio, even prior any further communications from COA, *dahil* familiar kayo sa JMC, *sabi ninyo nga, dapat alam ninyo na po iyon.*

Daghang salamat, Mr. Ortonio.

Maraming salamat po, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Risa.

Senator-Judge Lacson, you may proceed with your interjections when you're ready, Sir. You have two minutes.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

Good afternoon, Mr. Ortonio.

Mr. Ortonio. Good afternoon, Your Honor.

Senator-Judge Lacson. You know, even setting aside your educational background and your work experience, it is not difficult to conclude *na matalino kayong tao*. You are an intelligent person and an intelligent witness as well.

So kayo po iyong Assistant Chief of Staff *ng* OVP.

Mr. Ortonio. Yes, Your Honor.

Senator-Judge Lacson. *Kayo rin iyong concurrently, Administrative and Financial Officer?*

Mr. Ortonio. As the assistant chief of staff, Sir, I oversee the Administrative and Financial Office.

Senator-Judge Lacson. And finances niya?

Mr. Ortonio. Yes, Sir.

Senator-Judge Lacson. So effectively, *kayo iyong* Admin and Financial Officer.

Mr. Ortonio. Yes, Sir. I oversee the Admin and Finance, Sir.

Senator-Judge Lacson. You know, *kanina kasi*, upon questioning *ni* Attorney Kristine, she kept referring to the regular programs under the Office of the Vice President. *Natatandaan ninyo iyon?* So it aroused my curiosity. *Pina-pull-out ko sa staff iyong* General Appropriations Act *ng* 2022 as well as 2023. So, we found out, *ipapabasa ko sa inyo para hindi ma-charge sa oras ko.*

For 2022, under the Good Governance—regular *ito ha*—Good Governance Program, *mayroong* 621.6 million. *Pakibasa ninyo na lang, kayo na lang*

Mr. Ortonio. Sorry, Sir, *hindi ko makita*, Sir. Okay.

“For fiscal year 2022,” Sir, “under Good Governance Program, General Appropriations Act, P621.6 million,” Sir.

Senator-Judge Lacson. Please continue.

Mr. Ortonio. “And then Physical and Financial Plan for the Confidential and Intelligence Funds, P125 million for the fourth quarter. And then, for fiscal year—”

Senator-Judge Lacson. No. Under the same program, Good Governance Program under the PFP.

Mr. Ortonio. Good Governance Program under the PFP, Sir.

Senator-Judge Lacson. Okay, please continue.

Mr. Ortonio. “And then, for Fiscal Year 2023, Socioeconomic Program Delivery, P2.21 billion—”

Senator-Judge Lacson. Billion, yes.

Mr. Ortonio. “... billion under General Appropriations Act. And then, P500 million for—P125 million, first quarter; P125 million, second quarter; P125 million, third quarter; and P125 million fourth quarter. “

Senator-Judge Lacson. Okay. For a total of P500 million more.

Mr. Ortonio. Five hundred million.

Senator-Judge Lacson. Okay. Next slide. *I-juxtapose ko naman iyong*—Hindi. Next, next slide. *Huwag na iyan.*

I-juxtapose ko iyong 2022 *at saka* 2023 OVP Physical and Financial Plans, confidential intelligence. *Dalawang* budget years. *Pakibasa iyong* last quarter Physical Target.

Mr. Ortonio. *Baka puwede pong ma-request na ma-zoom.*

Senator-Judge Lacson. *Paki-zoom. Puwede bang hindi charge sa time ko, ako ang magbabasa?* Okay.

“(a) number of identified areas with surveillance conducted and monitored”;

“(b) percentage of activities implemented without untoward security-related incident.”

Paulit-ulit po ito, ano? So, *sabi ko kanina, kayo naman ay mukhang matalinong tao at matalinong witness, ano pong analysis ninyo diyan?*

Mr. Ortonio. On the—

Senator-Judge Lacson. Very simply, *paano ninyo ia-analyze iyong ganitong klaseng mga descriptions?*

Mr. Ortonio. These are the activities that will be done, Sir.

Senator-Judge Lacson. I know.

Mr. Ortonio. Yes, Sir.

Senator-Judge Lacson. *Pero kung ia-analyze ninyo, ano ibig sabihin nito? Hindi ba ito insulto sa common sense? Hindi man lang ninyo binago nang kaunti. At least, si Colonel Lachica siguro ito, ano? Una-unang, regular program, sana man lang, pagdating sa PFP, binago ninyo iyong nomenclature. Tapos, under the Physical Target, iyong column, sana man lang binago ninyo iyong Activities. Copy-paste eh.*

Again, uulitin ko, tingin ko sa inyo, matalinong tao, matalinong witness. Anong tingin ninyo rito? Kung idi-describe ninyo in one word?

Mr. Ortonio. Sir, I cannot—

Senator-Judge Lacson. *Oh, ako na ang magde-describe. I think it is stupid. Sana man lang binago-bago ninyo nang kaunti.*

Maraming salamat, Mr. Presiding Officer.

The Presiding Officer. Next would be Senator-Judge Padilla.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Maraming salamat po, Ginoong Tagapamahalang Hukom. Mayroon lang po akong tanong sa ating saksi. Opo.*

Ginoo, sa palagay ninyo po ba, karapat-dapat lamang na gumamit ng alyas kapagka confidential fund ang pinag-uusapan?

Mr. Ortonio. Sir, as someone who does not know, Sir, implementations of *parang mga* confidential activities on the ground, Sir, I cannot—*hindi po ako makakasagot nang maayos*, Sir, *kung puwede po ba or hindi*. But based on information that I got, Sir, when I consolidated the answers for the AOM, Sir, *hindi naman po siya na-mention sa akin po ni Colonel Lachica*. But I know, Sir, that activities, confidential activities are considered to be sensitive, and there might be individuals or groups that need to be somehow protected, Sir, because of the information that you would be getting from those people, Sir. So, *iyon po iyong tingin ko*, Sir. *Hindi ko categorically masasabi na puwede po iyong alias or hindi*. But going back to the JMC also, Sir, sa Joint Memorandum Circular, there is no specific provision, Sir, that indicates *kung paano po iyong paglagay ng mga pangalan sa documentary evidence of payments*.

Senator-Judge Padilla. Okay. *Maraming salamat po.*

Mayroon po akong tanong sa Prosecution. Magandang hapon po. Napakaganda po ng inyong ngiti. Opo.

Ms. Divinagracia. Good afternoon *din po*, Sir.

Senator-Judge Padilla. *Opo. Batid po ba ninyo ngayong mga petsa na ito, kung ano ang pinagdiriwang natin sa Pilipinas, magmula po—disinuebe hanggang atrenta?*

Ms. Divinagracia. *Buwan ng Wika daw po*, Sir.

Senator-Judge Padilla. *Ah, bukod po sa Buwan ng Wika?*

Ms. Divinagracia. National Heroes Day.

Senator-Judge Padilla. National Heroes Day. *Ito po ay hango sa ating mga bayani. Tama po ba?*

Ms. Divinagracia. *Opo.*

Senator-Judge Padilla. *Opo. Naniniwala po ba kayo na ang ating mga bayani ay may mga alyas? Kilala ninyo po ba sila Dimasalang?*

Ms. Divinagracia. I'm sorry po sa aking history teacher ...

Senator-Judge Padilla. Ayan, opo.

Ms. Divinagracia. ... hindi ko na po maalala masyado.

Senator-Judge Padilla. Ito po ang pinakamagandang panahon para maipaalala po sa inyo na ang ating mga bayani ay gumamit ng mga alyas: Dimasalang, Siling Labuyo, Tikbalang, Taga-ilog, May Pag-asa, Buwan, Magdalo, Leon Kilat, Vibora, Lakambini, Paralitiko, Dimas, Alipato, Liwanag, Balite, at marami pa pong iba. Ano po ang kahalagahan nito, palagay po ninyo? Ang alyas po, ano ang kahalagahan?

Ms. Divinagracia. First, Your Honor, I cannot comment because I am not sure of the circumstances surrounding their use of alias. Under the Anti-Alias Law, Sir, *ina-allow naman po iyong paggamit ng alias, provided kailangan po nakabanggit din, naka-disclose kung ano iyong real name.* So it's not completely prohibited, provided they also provide the real name.

Senator-Judge Padilla. Opo. Pakisagot lang muna po iyong tanong ko bago po iyong eksplanasyon po ninyo. Pakisagot lang po kung narinig ninyo na po iyong mga alyas na iyan. Ngayon lang po ninyo narinig?

Ms. Divinagracia. Some of it po, Your Honor, to be candid. Some of it I've already heard.

Senator-Judge Padilla. Magmula po 1892 hanggang 1896, ginagamit po nila ang mga alyas na iyan. Nagkaroon lang po ng isang traydor, ang pangalan ay Teodoro Patifio, na nagbulgar sa Katipunan. Alam po ba ninyo iyon?

Ms. Divinagracia. Yes, Your Honor, but the circumstances then were different, because we were under—

Senator-Judge Padilla. Bakit po iba? Bakit po naiba?

Ms. Divinagracia. May giyera po noon, Sir, and we were under occupation—

Senator-Judge Padilla. Wala po ba tayong giyera sa NPA? Ang NPA po, mayroong mga alyas. Mayroon pong Ka Cobra, Ka Agila, Ka Lawin, Ka Tigre, Ka Kapre, Ka Sirena, Ka Adobo, Ka Sinigang, Ka Pansit, Ka Tinola, Ka Sili, Ka Kamote, Ka Bawang, Ka Maxi, Ka Labuyo. Lahat po iyan ginagamit na alyas.

Ms. Divinagracia. Strictly speaking, Sir, iba po iyong internal armed conflict, iba naman din po iyong war.

Senator-Judge Padilla. Ah, bakit po naiba? Pareho po itong clear and present danger sa atin. So ang gusto ko lamang pong ipaalam sa ating Prosecution na napakahalaga po ng alyas sa panahon ng—Kayo po, sagutin po ninyo. Sa panahon ng—?

Ms. Divinagracia. Giyera, Sir, Your Honor.

Senator-Judge Padilla. Ang confidential po—ang pagkilos confidencial ay napakahalaga at hindi po ginagamit ang pangalan at hindi po pumipirma. At alam ninyo po ba, noong September 12, 1896, anong nangyari? Mayroong—nagkaroon tayo ng Trece Martires. Iyong mga nagtraydor ay itinuro ang mga totoong pangalan, totoong lugar kung nasaan iyong mga sumusuporta sa Katipunan.

Ms. Divinagracia. If I may, Your Honor?

Senator-Judge Padilla. One last na lang po.

The Presiding Officer. Kindly wind up, Senator-Judge Padilla.

Senator-Judge Padilla. One last na lang po.

Ms. Divinagracia. If I may, Your Honor, just address your question earlier. With all due respect, Your Honor, the Prosecution respectfully submits that whether the use of alias is allowed or not and whether it's necessary or not, to us, that is a non-issue because that was never raised by the—

Senator-Judge Padilla. Hindi po puwedeng maging non-issue sapagkat ito po ang ipinalalabas ng Prosekusyon ...

Ms. Divinagracia. If I may, Your Honor?

Senator-Judge Padilla. ... *na may mga pangalan na mga katawa-tawang pangalan. Eh, mas nakakatawa po itong mga pangalan noong mga nangyari noong araw.*

Ms. Divinagracia. With all due respect, Your Honor, if—

Senator-Judge Padilla. *At isa pa po—isa na lang po kasi—isa na lang po.*

The Presiding Officer. Kindly wind up, Senator-Judge Padilla.

Senator-Judge Padilla. *Ito na lang po. Kilala ninyo po ba kung sino si Marcial Bonifacio?*

Ms. Divinagracia. To be candid, Your Honor, I'm not familiar.

Senator-Judge Padilla. *Sino po?*

Ms. Divinagracia. I'm sorry, Your Honor.

Senator-Judge Padilla. *Si Benigno Aquino, Jr. Si Ninoy. Siya mismo may alyas.*

Maraming salamat po.

Ms. Divinagracia. Your Honor, if I just may, Your Honor, just to set the record straight, because it was made to—with all due respect to the Senator-Judge, it was—

Senator-Judge Padilla. Presiding Judge, allowed *ba iyon?*

The Presiding Officer. I was about to make a ruling, Senator-Judge Padilla.

Senator-Judge Padilla. *Maraming salamat po.*

The Presiding Officer. There was no question posed or poised, Attorney Mae.

Let's proceed to the next Senator-Judge who would interject. By the way, did you intentionally get rid of the platform?

Ms. Divinagracia. Yes, Your Honor, because we were not expecting that I'd be called again, Your Honor, to make way for the honorable Chair of the Panel of the Prosecutors, Your Honor.

The Presiding Officer. Okay. Understood. Understood.

Ms. Divinagracia. Thank you, Your Honor.

QUESTIONS OF SENATOR-JUDGE AQUINO

The Presiding Officer. Senator-Judge Aquino, you are recognized for your interjection. You may proceed Sir, when you're ready. You have two minutes.

Senator-Judge Aquino. So, *bago po iyang two minutes, Mr. Presiding Officer, tama po, si Ninoy Aquino po, ang kaniyang alyas ay Marcial Bonifacio para makauwi po siya sa Pilipinas noong nasa Boston siya. Oho. Pero wala naman ho siyang confidential funds na—wala ho siya sa mga AR na confidential funds. Lilinawin ko lang ho. Okay?.*

Pagdating ho sa Prosekusyon, ang posisyon ng Prosekusyon, iyang mga pangalan ay totoong tao, hindi ba? Correct, 'no? You have not really mentioned aliases in any of your—wala. Could you respond quickly? We have talked about aliases. Is the Prosecution talking about aliases?

Ms. Divinagracia. That was never our point, Your Honor. In fact, the point of the Prosecution is that that was never raised by the Defense either in their answer or in their pre-trial brief, Your Honor. So, to us, that should be a non-issue because even them, they never claimed that in any of their pleadings before this honorable Court.

Senator-Judge Aquino. Okay. Thank you. Okay, *kaklaruhin ko lang ha. Ang siyang tao lang pong nagsabi na alyas po sila, si Ms. Gina Acosta, in her testimony.*

Kanina po sabi n'yo rin na, Mr. Ortonio, na hindi siya alya, or hindi n'yo alam. But si Ms. Gina Acosta in her testimony did admit that in her perspective these are aliases. Just for the record po. Okay?

So, *ito po iyong mga tanong ko po. Sana po ito ang huling two minutes ko*, Mr. Presiding Officer. So, *unang-una*, Mr. Ortonio, you're very competent. Thank you for your answers and I want you to answer just very candidly. *Ano po iyong naging personal reaction n'yo noong napag-usapan na iyong possible misuse of the confidential funds at noong na-bring up na iyong mga, tawagin na nating katawa-tawang pangalan, na parang klaro naman ay hindi naman talaga totoong tao. Ano po iyong personal reaction po ninyo?*

Mr. Ortonio. Initial reaction, Sir, would be, of course, *mayroong* questions, Sir, 'no? There would be questions, but again, Sir, I go back to the presumption, Sir, that there is regularity in terms of the implementation, Sir.

Senator-Judge Aquino. Okay. So, may I ask, since you're in the top leadership of the OVP, *noong nabi-bring up na ito, ano iyong personal reaction, kung alam n'yo lang, ng Vice President, ng Chief of Staff, other leaders in your group noong napag-usapan na posibleng naibigay iyong pera sa mga kakaibang pangalan o baka hindi totoong tao?* What was your reaction? What was their reaction, would you know? *Nag-meeting ba kayo?* Did you call for an emergency meeting? Did you have a huddle in your office to talk about this?

Mr. Ortonio. Sir, because—*Iyong AOM*, Sir, because it was sent to my office, Sir, *pina-personally receive sa akin*, Sir, on behalf of the Vice President. Of course, I provided a copy to the Chief of Staff, Sir, and the Vice President. *Ang naging instruction lang naman po sa akin*, Sir, was to respond to the AOMs and make consultations with the Special Disbursing Officer and Security Officer *para masagot iyong mga concerns or issues raised by COA.*

Senator-Judge Aquino. Okay. *Iyan iyong mga actions n'yo*, Mr. Ortonio. I'm asking about your reaction. *Kinabahan ba kayo?* Were you worried? Were you concerned? Was there any concern shown by the Vice President, by the Chief of Staff, by people in your office *na posible itong perang ito ay hindi nagamit sa tama?*

Mr. Ortonio. On the matter of concern, Sir, I think there is a concern considering that there is already an immediate instruction, Sir, to reply to the AOM, Sir.

Senator-Judge Aquino. That's the AOM. Let's go to the—bringing up of these names in Congress. *Noong lumabas na iyong Piattos, Pusa, Pagong, mga ganiyan*, were you concerned *na iyong pera ng bayan posibleng hindi nagamit sa tama at ito ay pinirmahan mo at ito ay nakapangalan kay—sa inyong opisina*, for example. Were you concerned?

Mr. Ortonio. On *ano*, Sir—

Senator-Judge Aquino. Honestly.

Mr. Ortonio. Immediate reaction, Sir, yes, Sir, but *noong*—as the hearings went on, Sir, *parang binabalikan ko iyong AOM*, Sir, *hindi kasi po siya na-raise doon sa AOMs*. So, *parang nabawasan po iyong concern ko*, personal concerns *ko* with those acknowledgment receipts.

Senator-Judge Aquino. Did you call for an internal investigation after *na-reveal iyong mga pangalan na kakaiba?* *Nagpatawag ba kayo ng imbestigasyon sa inyong opisina?*

Mr. Ortonio. I personally did not, *ano*, Sir—*hindi na po ako nagpatawag*, Sir.

Senator-Judge Aquino. Did your office call for an internal investigation?

Mr. Ortonio. On that matter, Sir, I do not know, Sir, if there is an instruction coming from the head of agency, Sir, but personally to me, Sir, none, Sir.

Senator-Judge Aquino. Okay. So, *ito kasi, Mr. Ortonio, sa aming—well, sa aking opisina*, more than 10 years ago, *mayroon kaming nahanap na isang staff na ibang resibo iyong ginamit sa liquidation. Wala pa yatang ± 5,000 ito, sa totoo lang, at hindi nga niya ibinulsa. Mayroon siyang dapat hotel receipt, nawala niya, gumamit siya ng hotel receipt ng ibang tao.* That already made—that already elicited an internal investigation on our part. In the end, *pinaalis namin iyong staff na iyon na kilala namin, kaibigan namin. Limang libo lang iyon.* So, the common response we are looking for is that *kapag pera ito ng bayan, aksiyon kaagad at hahanapin n'yo talaga kung saan nagamit itong pera na ito. Kaya*, I am really wondering what was the—what were the actions and reactions of people.

So, ito iyong, ito iyong tanong ko rin: Mahalaga ba sa inyo—mahalaga ba sa iyo, Sir, na iyong perang ito ay nagamit sa tama? Na hindi ito nagamit sa mali o nabulsa lang?

Mr. Ortonio. Yes Sir, it is important to me, Sir. Because in the years *na nakasama ko rin po si Vice President Sara Z. Duterte*, Sir, she also would want *na money is spent properly for what it is intended to be used for*.

Senator-Judge Aquino. Okay. Last question, Mr. Presiding Officer.

During all of this time, *ipinatawag mo ba si Colonel Lachica o ipinatawag ba siya ni Chief of Staff Lopez or ni Vice President?* Would you know? *Kinausap mo ba? Tinanong mo ba, "Colonel, itong mga pangalan na ito, sino ba talaga ito? Totoo ba ito? Bakit nakalagay, "medicine," pero cash talaga iyong ibinigay?" Kasi sa totoo lang, Sir, iyong nakalagay doon, "gamot." Pero cash ang ibinigay na pambili ng gamot. Cash pa rin iyon, hindi ba?*

So, in short, *iyong ± 500 million, parang puro cash iyon. Wala man talagang supplies or tables and chairs because that presupposes na binili n'yo iyong tables and chairs or supplies. You actually gave cash na ± 500 million. Pinatawag n'yo po ba si Colonel Lachica at tinanong? As public officers, we have to exercise the diligence of a good father of a family. That's in our oath. So, ipinatawag n'yo po ba, ng inyong opisina, at pina-explain kung nasaan ba itong pera na ito?*

Mr. Ortonio. Sir, I was only able to request *na makausap si Colonel Lachica* in relation only to the response to the AOM, Sir.

Senator-Judge Aquino. So, *hindi n'yo po natanong itong mga specific questions na ito doon sa mga espesipikong mga pangalan, mga AR, mga ganiyan?*

Mr. Ortonio. At that time, Sir, when I was drafting the AOM, Sir, no Sir, because I was no—I had no knowledge, Sir, of the ARs, Sir.

Senator-Judge Aquino. *Salamat*, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

The Presiding Officer. Thank you, Senator-Judge Aquino.

Senator-Judge Erwin Tulfo is recognized.

Senator-Judge Tulfo (E). Thank you, Presiding Officer.

Ginoong Testigo, alam n'yo po ba na si Colonel Lachica ay hindi po bonded and, therefore, wala pong karapatan na mag-disburse ng CIF? Alam n'yo po ba ito o hindi?

Mr. Ortonio. I know that *si Colonel Lachica po* is not bonded, and as far as I know *po, ang Special Disbursing Officer po* is *si Ms. Gina Acosta*.

Senator-Judge Tulfo (E). *Pero sa pagkaalam po ninyo, puwede po siyang humawak ng ganiyan kalaking pera, at ayaw man n'yong sabihin na "disburse" kundi "implementation" na, kahit na hindi po siya bonded, puwede siya mag-disburse or mag-implement ng ganoon kalaking pera?*

Mr. Ortonio. Sir, I believe, Sir, with his designation as the Security Officer, Sir, he was tasked to implement the different activities on ground.

Senator-Judge Tulfo (E). So, *hindi n'yo na po kinuwestiyon si Ginang Acosta or si Colonel Lachica dahil may instruction po sa taas. Tama po ba iyon?* Is that—to my understanding, Sir?

Mr. Ortonio. *Hindi ko na po natanong*, Sir, because there is already a delegation or designation for the both of them for the activities—the different tasks that they will be doing.

Senator-Judge Tulfo (E). *Saan po galing iyong designation* Sir? Can you recall my memory?

Mr. Ortonio. The designation *po*, Sir, came from the head of agency Sir, the Vice President.

Senator-Judge Tulfo (E). All right. Sir, *sabi mo kanina—I don't know kung—nakalimutan ko, nasa breakroom po ako kanina. I was—sabi mo wala kang alam papaano ginastos ang confidential fund when nag-usap po tayo. Tama po ba iyon?*

Mr. Ortonio. Yes, Sir.

Senator-Judge Tulfo (E). ... You have no idea. *Pero* I was just wondering, *bakit kayo po ang sumasagot ng audit observation memorandum, o AOM, ng COA kung wala kayong alam sa paggasta ng confidential fund? Gayong ang AOM po, tama po ba*, correct me if I am wrong, *ay ito po ay kumukwestyon sa mga errors, exception, or deficiency sa audit po ng COA?*

Mr. Ortonio. For my office *po*, Sir, whenever we receive AOMs—for our office, Sir, *sa OVP*, when we receive AOM, Sir, it is the Chief of Staff and/or the—it's the Chief of Staff or the Assistant Chief of staff, Sir, who responds to AOMs on behalf of the institution.

Senator-Judge Tulfo (E). *Pero sabi n'yo po, kayo po ang sumasagot ng AOM.*

Mr. Ortonio. Yes, Sir. That is part of the tasks that are given to us, Sir, together with the Chief of Staff.

Senator-Judge Tulfo (E). [*Pero*] how can you—I was just wondering *kanina pa*, Sir, how can you answer questions, queries, *kung wala naman po kayong alam? Paano n'yo po masasagot nang tama?* The only way to do that is you will lie.

Mr. Ortonio. That's why *po*, Sir, *mayroon pong* instruction that was given to me, Sir, by the head of agency, Sir...

Senator-Judge Tulfo (E). *Na?*

Mr. Ortonio. ... to talk with the Special Disbursing Officer" and the Security Officer *para makuha po* *iyong mga* information from them and *malatag po doon sa* reply to the AOM.

Senator-Judge Tulfo (E). So, your reply was only based on what they said, what they told you?

Mr. Ortonio. That is correct, Sir.

Senator-Judge Tulfo (E). *Iyon.* Without documents, *resibo, et cetera.* None of that. Just plainly *na*, "*Ginoong Ortonio, dito po namin ginastos iyong pera. Blah-blah-blah*".

Mr. Ortonio. Yes, Sir. I consulted with them, Sir, for the reply, Sir.

Senator-Judge Tulfo (E). All right. Okay.

Hindi ka ba, kahit na katiting man lang, nagduda, Sir, na medyo mali yata ang paggasta ng confidential fund ng OVP, ni Colonel Lachica? Wala? Hindi man lang sumagi sa iyo na medyo may duda ka, na, "something is wrong here." Wala man lang? None at all?

Mr. Ortonio. At that time, Sir, *iyong mga* issues *naman*, Sir, and when I consulted with the Security Officer, he was able to provide a reply *naman*, Sir, so—although yes, initially, parang you would question, Sir, but with the replies that I got from the Security Officer, Sir, we were able to respond to them already, to COA.

Senator-Judge Tulfo (E). The reason why I asked you that, *Ginoong Witness*, was that *nandiyan po kayo, siyempre po iyong tiwala ng VP po sa inyo. Hindi man lang ninyo naisip na, "Teka, mali ito. Baka sumabit si VP Sara, sumabit ang OVP?"*

Baka hindi naman talaga ginagastos ni Colonel Lachica. Baka ay hindi talaga napupunta sa kung kuwan. Hindi ho lang ninyo naisip. Or didn't you tell the Vice President, "Ma'am, ano ho kaya, puwede bang tanungin ninyo ito or puwede bang silipin?" None at all, *hindi mo man lang nakausap si VP? Hinayaan n'yo na nang hinayaan na tumuloy-tuloy* for several months, several quarters *iyong ganitong klaseng expenditure?* Nobody informed the Vice President?

Mr. Ortonio. Sir, *hindi naman po na hinayaan*, Sir, because all the replies *naman po*, Sir, are also given to the Vice President for her review and final approval before it is being signed and to be sent to the Commission on Audit.

Senator-Judge Tulfo (E). So, when you signed the report, Sir, *alam na po ni VP.* Is that what you are saying? *Nakita niya na po na pinambili ng ganito, ng information, ng gamot, ng mga lamesa, na alam na ng VP before* you sign it?

Mr. Ortonio. Before I signed it, Sir.

Senator-Judge Tulfo (E). So, *dumaan na sa table ni VP?*

Mr. Ortonio. Yes, Sir.

The Presiding Officer. Kindly wind up, Senator-Judge Erwin.

Senator-Judge Tulfo (E). Thank you *po*, *Ginoong Testigo*. Mr. Presiding Officer, thank you.

QUESTIONS OF SENATOR-JUDGE MARCOS

The Presiding Officer. Thank you. Thank you, Senator-Judge Erwin.

To avail of the first round, Senator-Judge Marcos. You are recognized, Ma'am, you may proceed when you are ready. You have two minutes.

Senator-Judge Marcos. Yes, *maraming salamat, Mr. Ortonio. Medyo nalilito lang po kami dahil paiba-iba iyong explanation. Nag-umpisa sa PFP. Bakit po ba iba iyong 2022 PFP kung saan ay maliwanag na nakasaad good government lamang pero noong nagsulat kayo, iyong request n'yo sa DBM noong 22 August ng 2022, ang sinabi na ay dalawang bagay: good governance plus conduct of official engagements and functional representation in international and domestic events. Bakit nagbago na siya samantalang dapat iyong request talagang parehong-pareho doon sa PFP?*

Mr. Ortonio. Ma'am, I cannot specifically answer, Ma'am, on *kung bakit po* good governance *lang po* iyong *nailagay doon* because, again, Ma'am, I was not a—*hindi po ako part noong pag-craft noong physical...*

Senator-Judge Marcos. Noong PFP.

Mr. Ortonio. ...*Noong PFP po.*

Senator-Judge Marcos. *Hindi ka pa kasali noon sa PFP, ganoon ba iyon?*

Mr. Ortonio. Yes, Ma'am. I am not part of the drafting of the PFP.

Senator-Judge Marcos. *Pero hindi kayo nasabihan na hindi ito matching doon sa PFP, iyong request na sinulat?*

Mr. Ortonio. There was no comment, Ma'am, when we submitted it to the DBM, Ma'am.

Senator-Judge Marcos. *Tapos noong certification na, bale liquidation na ito, noong 17 October 2023, nagbago na naman. Ang sinabi na naman hindi good governance, hindi na conduct of official engagement. Ang sabi na "No untoward incident in the implementation of OVP programs." Bakit paiba-iba iyong wording maski sa certification?*

Mr. Ortonio. Again, Ma'am, for the certification, Ma'am, I cannot provide information, Ma'am, because it was the Security Officer who handled it, Your Honor.

Senator-Judge Marcos. *Akala ko may supervisory and administrative power ka kasi nga Assistant kayo ng Bise Presidente. Hindi ba nagre-report sa inyo iyong mga Security Officer kahit papaano? Kasi madadamay ka rin niyan sa COA, bakit paiba-iba — from PFP to budget request to certification, hindi nagtutugma.*

Mr. Ortonio. First, Ma'am, on the matter of the different wordings, Ma'am, if I can recall, Your Honor, it was never raised also in the Audit Observation Memo, Ma'am. So, it is something *na* we did not anymore look into when we were preparing the replies.

And then for the second concern, Ma'am, if the Security Officer is reporting to me, Ma'am, unfortunately, Ma'am, the Security Officer does not report to me. I only handle overall supervision for the administrative and financial services and strategy management office in relation to regular funding *po*, Ma'am.

Senator-Judge Marcos. I see. So, *iyong Security Officer, kanino nagre-report?*

Mr. Ortonio. The Security Officer, Ma'am, directly reports to the head of agency, the Vice President.

Senator-Judge Marcos. So, *kaya sa iyo, Mr. Ortonio, at saka kay Attorney Lopez, hindi na nagre-report iyon?*

Mr. Ortonio. In the performance *po ni Colonel Lachica* as Security Officer, no longer, Ma'am.

Senator-Judge Marcos. So, *masasabi mo ba na wala kang personal knowledge kung saan ginastos ni Colonel Lachica doon sa confidential funds?*

Mr. Ortonio. No, Ma'am, I would have no personal knowledge, Ma'am.

Senator-Judge Marcos. Okay, that will be all. *Maraming salamat po.*

Mr. Ortonio. Thank you, Your Honor.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

The Presiding Officer. Thank you, Senator-Judge Marcos.

Senator-Judge Raffy Tulfo, you are recognized Sir. You may proceed when you are ready, and you have two minutes.

Senator-Judge Tulfo (R). Mr. Witness, *sakitin ba ang marami sa inyong mga informants? May mga malalang sakit ba sila?*

Mr. Ortonio. Sir, that I would have no personal knowledge *po*, Sir.

Senator-Judge Tulfo (R). You should. *Kasi ito ang dami, 170,000; 50,000; 200,000 each informant. So, para mabigyan n'yo ng napakalaking halaga bawat isang informant pambili ng gamot, dapat magtataka ka, anong gamot kaya ang bibilhin nito? Bilang isang intelihenteng tao, I know you are very intelligent, you are very smart. Did you not try to ask or at least nagtaka baka may rayuma, arthritis, nagpapa-chemo? You should have asked. Kung mga bata nga, inquisitive iyong mga bata. "Anong gamot ang bibilhin mo"? 'Pag hihingan mo ng pera ang bata, kunwari, "Toy, pahinging pera, bili akong gamot. Anong gamot bibilhin mo, Kuya?" Bata iyon ha, Grade 1. Ikaw pa kaya? Why?*

Mr. Ortonio. At that time *po*, Sir, I did not ask anymore *kay Colonel Lachica*, Sir.

Senator-Judge Tulfo (R). Why not?

Mr. Ortonio. Because, Sir, parang I already gave my—I trusted what the Security Officer mentioned to me, Sir.

Senator-Judge Tulfo (R). But it is your responsibility to know *kasi ikaw ang pumipirma doon sa AOM.*

Mr. Ortonio. Sir, in terms of the responsibility to know, Sir, I am not sure, Sir, if I am the one who is responsible to know, Sir. The task to me—

Senator-Judge Tulfo (R). So, you are not sure. That means—*ayoko nang gumamit ng ibang salita.* It's unbelievable. It defies logic *talaga*, really, Sir. You are not really making sense at all.

Anyway, move on *tayo. Iyong—alam mo naman sa DOH nagbibigay ng libreng gamot.*

Mr. Ortonio. Yes, Sir.

Senator-Judge Tulfo (R). *Mayroon kayong mga medical assistance program?*

Mr. Ortonio. Yes, Sir.

Senator-Judge Tulfo (R). *O, bakit hindi na lang kayo humingi sa DOH? In fact, by the hundreds of millions and billions, nag-e-expire lang diyan sa bodega ng DOH, natatapon lang. Sayang.*

Senator-Judge Tulfo (R). So, *dapat humingi na lang kayo sa DOH. Bigyan ninyo lahat ng informant ninyo ng kung anong klaseng gamot, libre pa, nakalibre kayo.*

Mr. Ortonio. The wisdom behind the—how the confidential funds were implemented, Sir, I cannot answer, Sir, because again, Sir, I'm not the main implementer for the said activities, Sir.

Senator-Judge Tulfo (R). *Kaya nga, Mr. Smart Guy, noong makita mo na ang daming mga informant na binigyan ng mga hundreds of thousands each para sa gamot, you could have asked*

Lachica and said, "*Lachica, bakit hindi tayo pumunta sa DOH, manghingi tayo ng gamot para makalibre, makatipid tayo sa confidential funds?*" *Libre naman sa DOH 'pag Office of the President ang maghihingi, may budget—mayroon kayong allocation doon, I'm sure. In fact, sa Davao ginagawa ninyo na iyan, eh.*

Mr. Ortonio. Sir, that I cannot answer, Sir.

Senator-Judge Tulfo (R). So, again, it defies logic. *Hindi po kapani-paniwala ang mga pinagsasabi mo, Sir. For me, it really defies logic. Sayang po iyong pagkatalino mo rito. Nasira po iyong pagiging isang matalino mong tao. Nakakahiya po doon sa mga eskuwelahan na kung saan ka nag-aral at nag-graduate because ngayon, ipinakita mo na nagsasalita ka na para kang—sorry, Sir, sorry, Sir —~~nagtatanga-tangahan~~ "feigning ignorance."*

Salamat po, Sir. Pasensya na, Sir.

Mr. Ortonio. Your Honor, with all due respect, Your Honor, I personally took offense of that—take offense of that comment, Sir. I actually just did my duty, Sir. At that time, Sir, I believe na *iyon po iyong kailangan kong gawin bilang isang empleyado po, Sir. And I did my work, Sir, based on what was tasked of me, Sir, including the limitations that I can do to the duty that I will be doing, Sir.*

Senator-Judge Tulfo (R). Sir, you're talking about limitation. *Ikaw ang Deputy COS, and then malapit ka kay VP Sara, and then pirma mo ang nakasaad doon sa AOM. So, karapatan mo pong magtanong. Okay?*

Now, you're talking about taking offense. *Paano naman po iyong mga taong-bayan? They're being offended sa paglulustay ninyo ng pera. Lumilitaw na parang nilulustay ang pera dito, eh. Pera ng taong-bayan po ito ang pinag-uusapan natin. If you're taking offense, mas lalo pong offended ang napakaraming Pilipino ngayon kasi hindi mo pa naibibigay ang tamang sagot. Pero kung naibigay mo ng magandang sagot, logical na sagot, then mawawala po iyong sama ng loob ng taong-bayan sa inyo.*

Mr. Ortonio. Sir, with all due respect, Sir, I believe, Sir, this matter of the confidential fund, Sir, is still pending the final decision, Sir. We are currently still submitting our motion for reconsideration on this one, Sir, and we still have not received any final reply on this one. So—

Senator-Judge Tulfo (R). What I'm talking about, Sir, is, *iyong mga sagot n'yo po, it defies logic para sa isang matalinong tao. Kasi kung ako, Sir, pinresenta (present) sa akin iyong mga ganoong klaseng dokumento at nagtanong ako at hindi nasagot nang maayos, I will resign, kaysa naman makulong ako. Kaysa naman maipit ako ngayon, tulad ng nangyari sa iyo at tsaka sa mga previous witnesses. Hindi ba? Dalawa lang iyan, eh, patuloy kang magbubulag-bulagan, pirma ka lang nang pirma diyan nakapikit, pero ang consequence niyan, maaari kang makulong, maaari kang makasuhan. Anything can happen. Or mag-resign ka na lang. Kung ako, I will resign. Mapapahamak ako diyan, bakit ako pipirma diyan? Bakit ako pipirma sa mga nakalagay, "Pagong, Piattos, Pikit," et cetera, et cetera, kung ano pang mga kengkoy na mga pangalan—I would, I would not consent to that. Outright sasabihin ko, "Pag hindi ninyo ipaliwanag sa akin iyan, I will resign, period."*

Thank you po.

The Presiding Officer. That was not a question, Mr. Ortonio; you need not answer.

With the permission of Senator-Judge Tulfo. May the Chair replace the word "*nagtatanga-tangahan*" with "feigning ignorance" on the record?

I see Senator-Judge Tulfo nodding. So, let the records so reflect the statement "feigning ignorance" in lieu of the Tagalog word mentioned earlier.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Yes, thank you.

Before my time begins to run, can we have a request for the uploading of—third quarter ito, ano?

Voice. Yes.

Senator-Judge Pangilinan. Yes, okay.

Again, good afternoon, Mr. Ortonio. This is the accomplishment report for the third quarter of 2023, July 14 to September 30. Now, it appears here, *wala na iyang* ± 40 million worth of medicines. Correct?

Mr. Ortonio. That's correct, Sir.

Senator-Judge Pangilinan. Okay. *Mayroon siya noong* last quarter, *mayroon siya noong* first quarter, *mayroon siya noong* second quarter. *Pero noong* third quarter, *wala na*. *Sabi mo kanina, dahil iyon ang hinihingi noong mga* informant. So, *noong* third quarter, *wala nang hiningi?* *Ano iyon, gumaling na silang lahat?*

Mr. Ortonio. That I cannot—again, Sir, I cannot answer, Sir.

Senator-Judge Pangilinan. Yes. *At hindi ba*, you received the AOM on October, sometime in October?

Mr. Ortonio. October 4, 2023, Sir.

Senator-Judge Pangilinan. Okay. *Ito*, October 9. So, *doon sa* October 4, when you received the AOM, *nandoon na iyang findings na dinis-allow or pinapa-submit ang* additional documents, *tama*, for medicines, *et cetera?*

Mr. Ortonio. That's correct, Sir.

Senator-Judge Pangilinan. Okay. So, *mukhang hindi gumaling lahat noong binibigyan ng gamot. Ang nangyari, mukhang—dahil nakita n'yo iyang AOM at ipinagbabawal—ay binago ninyo. Tama po ba iyon?*

Mr. Ortonio. Sir, I—again, Sir, I cannot answer *kung binago iyang* accomplishment report, Sir, because it's something that I personally did not prepare also, Sir.

Senator-Judge Pangilinan. Yes. Okay. Now, I move on to another point. *Sabi ninyo, noong natanggap ninyo iyang AOM, you went point by point sa mga issue, tama?*

Mr. Ortonio. Yes, Sir.

Senator-Judge Pangilinan. *Ang tanong: bakit hindi n'yo binuksan iyang sealed envelope doon sa ARs? Kasi nandoon lahat noong mga acknowledgment receipts. Bawal ba?*

Mr. Ortonio. Sir, I did not open, Sir, because at that time, Sir, the AOM indicated that we submit—we are requested to submit the documentary evidence of payments.

Senator-Judge Pangilinan. And that is where—that is the acknowledgment receipts.

Mr. Ortonio. Acknowledgment receipts.

Senator-Judge Pangilinan. That is what you are being required to submit.

Mr. Ortonio. To submit, Sir. Yes, Sir.

Senator-Judge Pangilinan. So, should you not have gone through the acknowledgment receipts to check because you are being asked to submit the documentary evidence of payment and to check if the ARs are actually documentary evidence acceptable?

Mr. Ortonio. Sir, *iyon na po iyang nabigay sa akin ng* Special Disbursing Officer, Sir.

Senator-Judge Pangilinan. Now, okay, the question is: why didn't you open the envelope?

Mr. Ortonio. Sir, I did not open anymore, Sir, because at that time, Sir, I also have a designation as—

Senator-Judge Pangilinan. Were you instructed not to open it?

Mr. Ortonio. Sir, as Liaison Officer *kasi*, Sir, I am not in the position, Sir, to open *iyang* sealed na—

Senator-Judge Pangilinan. But you were instructed to submit documentary evidence of payment. In other words, you submitted, you complied without going through the documentary evidence of payment? How can you now tell if it was documentary evidence of payment that you were submitting when you did not open the envelope? What were you submitting?

Mr. Ortonio. I personally did not open it anymore, Sir.

Senator-Judge Pangilinan. That's why. But you were being required by COA to submit, to comply.

Mr. Ortonio. Yes, Sir.

Senator-Judge Pangilinan. So would you say that was substantial compliance?

Mr. Ortonio. Sir, *iyon po kasi iyong ni-require ng AOM, Sir.* So we submitted the documentary evidence of payment.

Senator-Judge Pangilinan. *Kasi ang sitwasyon dito, dahilan mo o depensa mo na hindi mo na tiningnan o hindi mo nakita. Pero tama bang depensa iyon na hindi mo nakita kaya hindi mo masasagot? Kasi ganoon din ang sinabi mo: "Wala ako doon, wala ako sa ground, I am not in the implementation, kaya hindi ko masasagot."* Is that compliance with, you know, the requirements of COA?

Mr. Ortonio. Sir, the duty po, Sir, to ensure that the—

Senator-Judge Pangilinan. There was nothing to stop you from opening the envelope, right? There was nothing.

Mr. Ortonio. Sir, the JC, Sir, indicates, Sir, that there are only certain individuals who have access to the—

Senator-Judge Pangilinan. You could get clearance. Could you? Of course, you can.

Mr. Ortonio. Sir, that—I did not ask anymore, Sir, because I—*parang respectfully in-acknowledge ko na kung ano iyong nakalagay sa JC, Sir.*

Senator-Judge Pangilinan. In other words, you really did not go point for point, as you earlier testified to. *Kasi 'pag sinabi mong you went point for point, parang masinop iyong naging trabaho ninyo, hindi ba? Thorough, point for point. Pero ang lumalabas dito ngayon, hindi ninyo binuksan iyong documentary evidence of payment, hindi ninyo binusisi, hindi ba? Sinabmit (submit) lang ninyo.*

Again, we're talking of hundreds of millions of pesos. And I'd like to think, being an intelligent Ateneo graduate, *hindi ba*, that you would have exercised greater diligence as you tried to monitor, check on, supervise, as financial services head, how government money was being spent. *Iyon ang tinatanong ng mga kababayan natin na mahirap paniwalaan—I'll wrap it up here—na kayo ay gumastos ng P122 million para sa gamot na reward dahil nag-surveillance iyong mga informant at nabigyan ng reward, at hiningi nila gamot, at hindi ninyo binigyan ng gamot, binigyan ninyo ng pera para sila na ang bibili ng gamot. Sabi ninyo, usual iyon.*

The Presiding Officer. Kindly wrap up, Senator-Judge Pangilinan.

Senator-Judge Pangilinan. No further questions, Mr. President.

QUESTIONS OF THE SENATE PRESIDENT

The Presiding Officer. Thank you, Senator-Judge Pangilinan.

Finally, Senate President Gatchalian and then Senator-Judge Padilla...

The Senate President. Thank you. Thank you, Mr. Presiding Officer.

The Presiding Officer. ...to wrap it up.

The Senate President. *Mayroong—binabasa ko itong reply ninyo, Mr. Ortonio, to COA, dated November 30, 2023. At nakasulat dito—I'll flash it on the screen. Paki-flash na lang—*"Hence, the 125 million CF was fully utilized for expenses planned, implemented, and paid during

the three-month period covering October to December 2022.” So, *sino nagbayad noong P125 million in advance?*

Mr. Ortonio. Sir, there was no payment in advance that was made, Sir. All payments were made between the period of December 21 to December 31, Sir.

The Senate President. But very clear *kasi dito na binayaran na siya*. Paid, eh, three months in advance. In fact, *mayroon pa siyang* months. And *ito iyong kadugtong ng sinabi ng ating Presiding Officer*, obligation incurred. So, *ang basa ko dito, nabayaran na siya kaya ni-reimburse na lang noong 125 CF*.

Mr. Ortonio. Sir, if I may be allowed, Sir, to clarify, Your Honor, the—*iyong parang* explanation from yesterday, Sir. For the period of October to December 2022, Sir, based on the information that was shared by the Security Officer, once we have already submitted *iyong* PFP sometime in September, the security team, Sir, meaning, *si Colonel Lachica*, Sir, already made coordination with informants or agents on the ground. As to the extent of the coordination that they did, Sir, I am not privy to that anymore.

However, when we received the SARO on December 13, 2022, which already indicates that we already have the funding for the confidential funds, that’s the time that they were able to make definitive agreements with the informants on the ground. And once the check has been encashed already, that’s the time that payments were made between the period of December 21 to 31.

The Senate President. *Mas realistic pa kasi kung in-advance tapos ni-reimburse, kaysa P125 million gagastusin in 11 days. So, mas realistic pa nga itong explanation ninyo kaysa doon sa 11 days na gagastusin.* And we’re talking about 845 acknowledgment receipts scattered all over the country.

Mr. Ortonio. Sir.

The Senate President. *Kaya, itong explanation ninyo, mas realistic pa, albeit, although ano ito, violation noong Joint Circular.*

Mr. Ortonio. So, I’d like to point out *lang*, Your Honor, that there were no reimbursements made, Sir. Based on what was relayed to me, Sir, there were no reimbursements made, Sir.

The Senate President. But this was the information relayed to you by Lachica?

Mr. Ortonio. Colonel Lachica, Sir.

The Senate President. And *itong si Colonel Lachica, kanina naririnig ko, hindi n’yo alam iyong direct na ginagawa niya; hindi rin alam ni Acosta. So, sino lang nakakaalam sa opisina ninyo tungkol sa confidential operations or itong paggastos, iyong paggastos ng confidential operations?*

Mr. Ortonio. For the confidential operations, Sir, again, Sir, I have no personal knowledge, Sir. I would assume, Sir, because *mayroon po siyang* designation from our head of agency, then the reportorial duties, I would presume, would be directly to the Head of agency.

The Senate President. Which is Vice President Sara.

Mr. Ortonio. Which is the head of agency, Sir.

The Senate President. So, *dalawang tao lang sa opisina ninyo, si Vice President Sara at si Colonel Lachica lang ang alam kung paano gastusin itong P500 million.*

Mr. Ortonio. Sir, I would have no personal knowledge again, Sir, *kung sila lang pong dalawa*, Sir.

The Senate President. *Kasi ikaw iyong gumawa noong reply pero galing kay Colonel Lachica iyong information, si Gina naman kahapon ganoon rin, hindi rin niya alam. So, I am trying to understand sino nakakaalam noong paggastos ng 500 million dahil hindi siya maliit na pondo. But based on your information, dalawang tao lang nga ang parang nakakaalam nito: si Vice President at si Colonel Lachica.*

My last question, Mr. Presiding Officer.



Kanina nasabi ninyo na based sa information, mayroon pang mga tao si Colonel Lachica. Tinransfer (transfer) ni Acosta iyong pera—or dinisbers (disburse) ni Acosta iyong pera kay Colonel Lachica, and si Colonel Lachica dinisbers (disburse) niya ulit dito sa mga tao niya. So, double-handling ang nangyari dito sa pera. So, paano natin malalaman kung talagang iyong pera ay pumunta sa mga activities o tao na kailangan puntahan dahil ni iyong accountable officer hindi niya na alam kung paano na-disburse iyong pera doon sa mga informants. Anong kuwento sa iyo ni Colonel Lachica na umabot talaga dito sa mga informants?

Mr. Ortonio. Sir, based on what was shared to me, Sir, Ms. Gina Acosta disbursed the amount to the Security Officer, and then the Security Officer implemented it on the ground.

The Senate President. Yes, but violation *na kasi iyong disbursement to Colonel Lachica. And then there's another violation na from Colonel Lachica to some people who disbursed the amounts. Ibig kung sabihin, ang daming taong humahawak noong pera bago umabot sa mga informants. So, in that sense, ang daming violation o tinakbuhan noong pera.*

Thank you, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE VILLAR (C)

The Presiding Officer. Thank you, Senate President.

With the indulgence of Senator-Judge Padilla, Senator-Judge Camille Villar will be availing of her first-round opportunity to interject. So, I will recognize her first.

Again, with your indulgence, Senator-Judge Padilla. I see you nodding.

Senator-Judge Camille Villar, you may proceed when you are ready. You have two minutes, Ma'am.

Senator-Judge Villar (C). Okay, thank you. Thank you, Mr. Presiding Officer.

Good afternoon po, Mr. Ortonio.

Mr. Ortonio. Good afternoon, Your Honor. *Maayong hapon.*

Senator-Judge Villar (C). *Maayong hapon din.*

I just have a few clarificatory questions for you, if you don't mind. *Tama po ba, kayo ang Assistant Chief of Staff ng OVP?*

Mr. Ortonio. Yes, that's correct, Your Honor.

Senator-Judge Villar (C). And *kayo po ang sumagot doon sa AOM na ipinadala ng COA? Kayo po iyong nag-prepare ng report?*

Mr. Ortonio. Yes, that's correct, Your Honor.

Senator-Judge Villar (C). Yes. And what was the process in which you did that? Or what were the things that you had to do—you prepared the AOM, you consulted with—?

Mr. Ortonio. *Noong na-receive po iyong AOM, Ma'am, I informed the Chief of Staff and the Vice President. And from there, there was an instruction to me to coordinate with the Special Disbursing Officer and the Security Officer, which I did also, Ma'am. And then from their replies, Ma'am, parang I drafted the response and then I submitted the reply for final approval to the head of agency.*

Senator-Judge Villar (C). And, of course, in your capacity as the Assistant Chief of Staff and in your own capacity, *sa inyo pong palagay ay nagampanan ninyo naman iyong inyong role dito sa prosesong ito at nagawa ninyo naman adequately iyong report?*

Mr. Ortonio. Yes. At the time, Ma'am, yes, I would say so, Ma'am, because from the issues that were raised in the AOM and in the NS, *marami pong mga concerns or issues na natanggal po doon sa final na—na natanggal doon sa Notice of Disallowance that we received.*

Senator-Judge Villar (C). Okay. And *lahat 'yung mga requirements naman ay na-fulfill n'yo naman doon sa report, right, a majority of it?*

Mr. Ortonio. Yes, all the—*lahat po ng mga* concerns that were raised, we were able to provide answers and supporting documents.

Senator-Judge Villar (C). And *doon po sa* AOM, anywhere in the AOM, did it say that there was a misuse or misappropriation of the funds?

Mr. Ortonio. No, there was no mention *po*, Ma'am.

Senator-Judge Villar (C). Okay. And are the findings of the AOM final?

Mr. Ortonio. No, Ma'am. It is subject for comments, Ma'am, and right now, for *ano po siya*, Ma'am, Motion for Reconsideration.

Senator-Judge Villar (C). Ah, okay. *Iyon lamang po. Maraming-maraming salamat. Daghang salamat po.* Thank you.

Mr. Ortonio. Thank you, Your Honor.

The Presiding Officer. Thank you, Senator-Judge Camille Villar.

Senator-Judge Villar (C). Thank you, Mr. Ortonio.

Thank you, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Maraming salamat po, Ginoong Tagapamahalang Hukom.*

Tuloy ko lang po 'yung ating tanungan, *opo. Pagkatapos po n'yong sumagot, puwede pong* pati na rin sa Depensa, mayroon din po akong tanong?

Kanina po nahinto tayo kay Marcial Bonifacio.

Opo. Balikan ko po. Naputol po tayo kanina, opo. Naniniwala po ba kayo na ang confidential fund, para iyan po ay makakuha tayo ng impormasyon para maka-save ng buhay, para magkaroon tayo ng law and order?

Ms. Divinagracia. If used properly, yes, Your Honor.

Senator-Judge Padilla. Okay, *opo. Kayo po sa* Defense, *naniniwala po ba kayo?*

Ms. Ferrer. Yes, Your Honor.

Senator-Judge Padilla. *Opo. Kung sa palagay n'yo po, noong panahon na si Marcial Bonifacio ay may confidential fund at nalaman niya na mayroong magtatangka sa kaniyang buhay, sa palagay n'yo po ba buhay pa si Senator Benigno Aquino ngayon?*

Ms. Divinagracia. Well, assuming, Your Honor, that the foreign occupants were those lone threats to his life, then probably yes, Your Honor.

Senator-Judge Padilla. *Salamat po. Kayo po?*

Ms. Ferrer. Actually, Your Honor, I am not aware really of the circumstances during that time, Your Honor, so I cannot really comment intelligently on that. Yes, *opo. Yes, Your Honor.*

Senator-Judge Padilla. *Sige. Si Marcial Bonifacio po ang maituturing natin na nagbigay ng daan para sa People Power, 'yung kaniya pong pagkamatay, opo. Siya po ay na-assassinate. Opo. Sa palagay n'yo po ba, kung mayroon siyang confidential fund noong panahon na iyon ay nagkaroon siya ng information na mayroong assassination na magagawa sa kaniya?*

Ms. Ferrer. Likely, Your Honor.

Senator-Judge Padilla. *Salamat po.*

Pangalawang tanong po. Palagay n'yo po ba, kung mayroon confidential fund si former Senator Angara, na sa ngayon ay Secretary ng DepEd, maaari po bang napigil niya ang mga shooting incident sa mga paaralan?

Ms. Divinagracia. I cannot specu—

Senator-Judge Padilla. *Wala pong speculation. Sa tingin lang po n'yo kung mayroon siyang—*

Ms. Divinagracia. I profusely apologize, Your Honor, I cannot speculate.

Senator-Judge Padilla. *Sabi n'yo po kasi kanina, sumang-ayon po kayo, kung may confidential fund, maaaring makapigil, makapagbigay ng kapayapaan, law and order. Sa palagay n'yo po ba, kung mayroon siyang confidential—ano lang naman po iyon, yes or no. Kung hindi po kayo naniniwala, ay 'di "no."*

Ms. Divinagracia. No, Your Honor.

Senator-Judge Padilla. Okay. *Salamat po.*

Kayo po?

Ms. Ferrer. It can, Your Honor, if the purpose of the confidential fund is to conduct surveillance, Your Honor, on the threats.

Senator-Judge Padilla. *So, kinda?*

Ms. Ferrer. Yes.

Senator-Judge Padilla. *Tama ba 'yung aking diction, "kinda?"*

Salamat po. Salamat po sa inyong dalawa.

Isang tanong na lang po sa ating saksi. Naniniwala po ba kayo na hindi pa naman talaga natapos ang imbestigasyon ng COA dito patungkol sa sinasabing akusasyon sa ating Vice President?

Mr. Ortonio. Yes, Sir. For—*nasa stage pa po, Sir, ng submission of a—'yung decision for the Motion for Reconsideration. So, I would say that it is not yet final, Sir.*

Senator-Judge Padilla. *Hindi po siya final.*

Iyon lang po. Maraming salamat po sa inyo.

The Presiding Officer. Thank you, Senator-Judge Padilla.

Senator-Judge Lacson, you have two minutes, Sir. You may proceed when you're ready. Thereafter, Senator Marcos, and then we're through.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Very quickly *lang*, Mr. Presiding Officer.

Ano na po ngayon 'yung status ng security classification noong inyong PFP covering the PAPs—programs, activities, projects—na socio-economic at saka good governance?

Mr. Ortonio. Sorry, Sir?

Senator-Judge Lacson. Including—*ano ngayon ang present security classification? Has it been declassified or is it still classified information?*

Mr. Ortonio. Sir, I would have no idea *po*, Sir—

Senator-Judge Lacson. *Teka muna, terminated na po ba 'yung PFP? Terminated na, tapos na.*

Mr. Ortonio. If in terms of the activities, Sir, I would assume, Sir, *na tapos na po siya.*

Senator-Judge Lacson. Therefore, *kung tapos na, declassified na?*

Mr. Ortonio. As to the terminology, Sir, unfortunately, I would not—

Senator-Judge Lacson. Declassified, meaning, *hindi na ito classified information. You know, I'm trying to drive at this scenario. Kasi ang dami sa aming nagtataka talaga. Totoo ba talaga 'yung mga aliases? Totoo bang nakatanggap sila ng reward, ng informants' money? Para lang*

matapos na 'yung aming panghuhula, baka puwedeng maipresenta all the documents relative to the PAPs, relative to the PFP, relative to the expended outcome. Para lang makapagdesisyon kami. Kasi sa ngayon nanghuhula kami, saan ba napunta iyong pera? Possible po ba iyon?

I'm also addressing that to the Presiding Officer. Is it possible for the Court to issue subpoena duces tecum just to settle this issue once and for all? *Para makita natin saan ba talaga napunta iyong pera.* So, we can have informed decision at the proper time. *Ngayon hula kami nang hula, eh.*

Alam ninyo, Mr. Ortonio, misuse—sa akin ha, 'yung misuse, maski masama 'yung connotation legally, na-misuse mo pero hindi mo ibinulsa, probably puwedeng patawarin siguro ng mga kababayan natin, hindi ba? Naawa ka doon sa mga pulis, sa mga sundalo. Na-misuse mo kasi hindi intended doon sa item sa GAA, pero tinulungan mo kasi maraming nagkakasakit, nauulanan, naaarawan. Sa akin, medyo mauunawaan pa ng publiko, although I'm not saying na hindi violation ng law, kasi may technical malversation. But in the eyes of the public, pagka na-misuse pero hindi naman ibinulsa, medyo subdued nang kaunti 'yung galit.

Thank you, Mr. Presiding Officer.

The Presiding Officer. To respond, as a general rule, the Court should sit as a passive body, Senator-Judge Lacson, and leave it up to the Prosecution to subpoena documents they deem necessary to prove their case.

However, the Court is not without any power after both Counsels have presented their respective Evidence-in-Chief to call a witness, recall a witness, call a witness that was not called by either or named by either party, and subpoena documents in connection with the *subpoena ad testificandum*, *duces tecum* may also be issued, citing as basis, *City of Cebu v. Gako, A.M. RTJ-8-2111* and *People v. Valera, G.R. No. 20286*.

So, at the appropriate time, Senator Lacson, the Court can avail of that power.

Senator-Judge Lacson. Yes, thank you, Mr. Presiding Officer, for the response. *Kasi para hindi na tayo nanghuhula lahat dito. Twenty—ilan tayo rito? Hindi natin alam kung talagang saan napunta 'yung pera.* Of course, there's a presumption *na nagamit nang maayos.* But still, there's that doubt. You cannot remove that because of the so many issues *na lumabas dito sa aming trial.* And we want to be satisfied. After all, we'll be deciding on the basis of evidence and *kung anong tingin namin kung ano iyong tama o ano iyong mali.*

Thank you, Mr. Presiding Officer.

The Presiding Officer. We reserve that right—the Court reserves that right, Senator-Judge Lacson.

Finally, Senator-Judge Marcos for her interjection.

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. Yes, *maraming salamat.*

At naintriga lang ako sa nasabi kanina. What's the documentary evidence of payment? Sa palagay n'yo, ano 'yung katibayan na nabayaran at hindi?

Mr. Ortonio. For the documentary evidence of payment *po*, we submitted the acknowledgement receipts, Ma'am.

Senator-Judge Marcos. *Iyong AR pa rin.* In the context of rewards and incentives, what is the documentary evidence of payment?

Mr. Ortonio. Based on my understanding, Ma'am, acknowledgment receipts, Ma'am.

Senator-Judge Marcos. *AR din. Wala talagang resibo, walang voucher, walang invoice, ganoon po ba?*

Mr. Ortonio. *Ang understanding ko po, Ma'am, the acknowledgment receipts, Ma'am, can suffice, Ma'am.*

Senator-Judge Marcos. And the COA did not require OVP to submit what was inside that sealed envelope *na, sabi nga n'yo kanina, 'yung AR lang ang binuksan n'yo, hindi na tiningnan 'yung sealed envelope. Kasi ba hindi required ng COA iyon?*

Mr. Ortonio. Ma'am, when we submitted the—initial *po na* comment *ng* COA is that we submit documentary evidence of payment to include also either ARs or official receipts. We submitted *po* ARs as documentary evidence of payment, and in the Notice of Disallowance *po*, there was no concern anymore in terms of the acknowledgment receipts, Ma'am.

Senator-Judge Marcos. So inasmuch as *'yung* COA did no longer ask for other documentation aside from the AR and the other documents submitted, is that the reason *kung bakit hindi na n'yo binuksan iyong* sealed envelope?

Mr. Ortonio. Ma'am, at that time, Ma'am, when I submitted the documents, Ma'am, and it was sealed, Ma'am, as the role of the liaison officer, Ma'am, who will transmit documents to the Commission on Audit, there is no specific *na* provision, Ma'am, that the liaison officer needs to open it. I just need to transmit the documents to the Commission on Audit.

Senator-Judge Marcos. Thank you very much, *at iyon nga ang gusto ko i-clarify. Hindi na kinailangan buksan 'yung sealed envelope dahil, iyon nga, 'yung AR at 'yung mga dokumentong naibigay, iyon na 'yung katibayan na nabayaran.* Thank you.

Mr. Ortonio. Thank you, Your Honor.

The Presiding Officer. Thank you, Senator-Judge Marcos.

MANIFESTATION OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E) urged both the Counsel for the Panel of Prosecutors and the Counsel for the Respondent to consider presenting Colonel Raymond Dante Lachica, who had been repeatedly mentioned by several witnesses and had reportedly expressed willingness to testify. Expressing his hope that Colonel Lachica will eventually testify, Senator-Judge Tulfo (E) noted that, although the Court could not compel him to appear, his testimony could clarify gaps in the evidence and connect the facts presented.

REMARKS OF THE PRESIDING OFFICER

The Presiding Officer noted the manifestation and reiterated that the Court could not compel either party to call a particular witness. He stated, however, that after the parties had presented their Evidence-in-Chief, the Court could call Colonel Lachica if he is not presented by either party, in the exercise of its discretion and pursuant to the Supreme Court ruling previously cited.

QUESTIONS OF THE PRESIDING OFFICER

The Presiding Officer. Just a few questions, Mr. Ortonio, to wind up. *Kayo po ang nagsagot o sumagot sa lahat ng AOM, Notice of Suspension, at Notice of Disallowance. Tama po?*

Mr. Ortonio. Yes, I am one of the signatories *po*.

The Presiding Officer. *Wala po doon sa AOM o kahit anong Notice of Suspension at Disallowance iyong issue tungkol sa mga alyas sa acknowledgment receipt. Na-raise po ba iyon doon?*

Mr. Ortonio. It was not raised in any of the observations from COA, Sir.

The Presiding Officer. So, *hindi n'yo kinailalang sagutin iyon?*

Mr. Ortonio. We did not answer, Sir.

The Presiding Officer. Did not need to answer because there was no question posed?

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. There was no issue also raised by COA with respect to spending it for 11 days, correct?

Mr. Ortonio. That's correct, Your Honor.

The Presiding Officer. *Wala rin kayong kailangang sagutin kaugnay niyon?*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. Now, the Notice of Disallowance for the three quarters of 2023, it was disallowed *dahil, base sa testimonya ni Gina Acosta, binigay niya ang pera kay Colonel Lachica. Tama po ba?*

Mr. Ortonio. That's one of the observations *po*, Your Honor.

The Presiding Officer. That's one of—It's not an observation anymore, Mr. Ortonio, it's a Notice of Disallowance.

Mr. Ortonio. Disallowance, yes. That's correct, Your Honor.

The Presiding Officer. So, *sa tingin ng COA, bawal, iligal, hindi sang-ayon sa JC 2015-1 'yung pagbigay ni Gina Acosta kay Lachica.*

Mr. Ortonio. Based on the Notice of Disallowance, Your Honor, it indicates *na* the transfer from one agency to another, Sir.

The Presiding Officer. *Kayo po, alam n'yo po ba iyon, na binigay ni Gina Acosta 'yung huling quarter ng 2022 at tatlong quarter ng 2023 kay Colonel Lachica lahat?*

Mr. Ortonio. At the time, Sir, no. I did not, Sir.

The Presiding Officer. At the time *na binigay niya o* at the time *na nangyari na?*

Mr. Ortonio. At the time *na nangyari lahat*, Sir, I would have no personal knowledge, Sir.

The Presiding Officer. *Hindi—Pero noong ginawa mo 'yung AOM, unang sagot sa AOM, alam mo na na binigay ni Gina kay Lachica.*

Mr. Ortonio. Yes, Sir, because the—they were introduced as the Special Disbursing—

The Presiding Officer. So, October *mo nang nalaman na binigay lahat ni Gina kay Lachica. October 2023, noong sinagot mo 'yung unang AOM para sa huling quarter ng 2022, doon mo pa lang nalaman na binigay lahat ni Gina kay Lachica 'yung pera.*

Mr. Ortonio. That's correct, Your Honor.

The Presiding Officer. Now, is Lachica an accountable officer based on the definition of the JC?

Mr. Ortonio. Based on the JC, Sir, he is not an accountable officer, Sir. It's the SDO.

The Presiding Officer. And that is the reason why his signature does not appear in any of the documents submitted by the Vice President in relation to the AOM, NS, and Notice of Disallowance. *Dahil hindi naman siya empleyado ng OVP, hindi ba?*

Mr. Ortonio. Yes, Sir, he is not an employee, Sir, although he is designated as the Security Officer.

The Presiding Officer. Is that allowed? Designating someone as a Security Officer who is not an employee of the office and being given that much money to disburse?

Mr. Ortonio. Sir, based on my understanding, Sir, on the JC when I read it, Sir, there is no specific guideline, Sir, on who to designate as a Security Officer; but there is a provision *po*, Sir, that the head of agency may designate a Security Officer to implement different programs and activities.

The Presiding Officer. Now, you keep on mentioning that Lachica implemented and that Acosta disbursed. *Ano pong definition n'yo ng implement?*

Mr. Ortonio. Implement, Sir, would be to perform the different activities on the ground, Sir.

The Presiding Officer. Which entails what? How will he perform the different activities on the ground in relation to confidential funds?

Mr. Ortonio. Possible, Sir, to coordinate with the different informants or agents, Sir. *Iyon po 'yung puwede kong mabigay na* information, Sir.

The Presiding Officer. Mr. Ortonio, *sa mga salitang* "perform" at "coordinate," *saan po doon 'yung paggastos ng* confidential fund? "Perform, coordinate," *iyon ang* definition *mo ng* implement.

Mr. Ortonio. Yes, Sir.

The Presiding Officer. O, *nasaan doon—Bakit binigay kay* Colonel Lachica *'yung pera at* *bakit siya gumastos kung* perform at coordinate *lang pala?*

Did Colonel Lachica spend the money?

Mr. Ortonio. I would say so, Sir, that being the implementer of the different activities, Sir, he spent the money for the different confidential activities.

The Presiding Officer. So, Colonel Lachica disbursed the money for various confidential activities.

Mr. Ortonio. I would say, Sir, *na* he implemented the different activities, Sir.

The Presiding Officer. Mr. Ortonio, *nasa* "spent" *na* *tayo. Binago ko lang ng* kaunting "disbursed," *bumalik ka na naman sa* "implement." Again, "spent, disbursed," it means the same thing. *Ang gumastos na noong pera na binigay ni* Gina, *si* Colonel Lachica *o mga tauhan niya.*

Mr. Ortonio. Sir, based on my understanding, Sir, it is Ms. Gina Acosta who disbursed the fund, Sir, and then *si* Colonel Lachica *po 'yung nag-implement or* conduct *noong mga* confidential activities—

The Presiding Officer. *Hindi nagbayad si* Colonel Lachica?

Mr. Ortonio. Part of his duties as the implementor, Sir, *nagbayad siya doon sa mga—*

The Presiding Officer. So, is it your theory that Gina disbursed to Lachica as an end user?

Mr. Ortonio. *Iyon po 'yung ano ko,* Sir, that's my understanding *po,* Sir, on the—

The Presiding Officer. *Kung end-user si* Lachica, *bakit niya binawi iyong* acknowledgment receipt *niya noong nagbigay na siya ng mga* acknowledgment receipt *para sa diumano binayaran niya? Hindi ba dapat itinago niya iyon kasi—nag-disbursed si* Gina, *tinanggap ni* Lachica. *Kung siya ang end-user, tama lang na may* acknowledgment receipt *siya. Bakit niya binawi? Bakit hindi itinago sa file?*

Mr. Ortonio. Sir, in terms of *binawi po iyong* AR, sir—

The Presiding Officer. *Ni* Lachica.

Mr. Ortonio. I do not know of that, sir, because—

The Presiding Officer. That's what Gina said.

Mr. Ortonio. The ARs, sir, were given to me by Ms. Gina, and then, that's what I submitted to the Commission on Audit.

The Presiding Officer. Mr. Ortonio, the ARs of the various aliases *na binanggit, iyong kanina pa sinasabi ng iba-ibang apelyido kasama apelyido ko, iyon iyong isinabmit (submit) ni* Colonel Lachica. *Ayon kay* Gina, *nagbigay siya ng pera kay* Colonel Lachica. *At bilang katibayan, nagbigay ng* acknowledgment receipt *si* Colonel Lachica. *Pero noong nagbigay siya noong mga* acknowledgment receipt *at liquidation, binawi daw ni* Colonel Lachica *iyong* acknowledgment receipt. So *wala kang kopya noong* acknowledgment receipt *ni* Lachica?

Mr. Ortonio. Sir, I'm sorry, sir.

The Presiding Officer. None.

Mr. Ortonio. *Ang pagkakaalam ko, sir,* is that I got the box with acknowledgment receipts, sir, from the special disbursing officer and that's what I submitted.

The Presiding Officer. I know. So you're not aware of any acknowledgment receipt signed by Lachica.

Mr. Ortonio. No, sir.

The Presiding Officer. So if Gina disbursed to him, *bakit hindi mo hinanap iyong acknowledgment receipt kay Lachica?*

Mr. Ortonio. Sir, the request was for the DEPs for the implementation, sir.

The Presiding Officer. No, no. If your theory is *dinisbers* (disburse) *kay Lachica*, *in-implement ni Lachica*, *hindi ba kailangan may papel iyong dinisbersan* (disburse) *na tinanggap niya iyong pera?*

Mr. Ortonio. Sir, I did not request for it anymore, sir.

The Presiding Officer. As a final question, sir. So this is your story. You placed in the PAP or you know that what they placed in the PAP, Good Governance Program, Socio-Economic Delivery Program, *pero gagastusin iyong confidential fund para sa informants, para tiyakin na ligtas ang Ikalawang Pangulo saanman siya magpunta sa bansa kaugnay ng trabaho niya at ginamit itong confidential fund para bumili ng impormasyon. Pera ang ibinigay para ipambili ng pagkain, ng silya, ng computer, ng gamot kapalit ay impormasyon para matiyak ang kaligtasan ng VP. At napatunayang matagumpay iyon dahil walang nangyaring masama sa ating bise presidente hanggang ngayon. Iyan po iyong buod, summary, ng paggamit ng confidential fund ng OVP, base sa inyong presentasyon?*

Mr. Ortonio. Sir, with due respect, sir, just—

The Presiding Officer. You can correct, you can correct me, sir.

Mr. Ortonio. Just one correction *lang po, sir*.

The Presiding Officer. Yes, sir.

Mr. Ortonio. It's to ensure that the activities of the OVP will be implemented safely, and that no untoward *na mga mangyayari* in the performance of—*walang mangyayari sa mga* different activities *ng OVP*. That's what I understand.

The Presiding Officer. *Walang mangyayaring masama sa kaniya at doon sa makikilahok.* That's acceptable *naman na—*

Mr. Ortonio. For the office and ano, sir, for the people who will be, say, for example, attending mga events, sir.

The Presiding Officer. *Kaya nga. Hindi lang kay VP, pati sa mga taong makikilahok doon sa event, para ligtas silang lahat doon.*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. *Iyan po iyong sinabi sa inyo ni Colonel Lachica na rason kung bakit siya namigay ng pera sa iba't bang informant sa pamamagitan ng reward o pera pambili ng gamot, ng silya, ng computer, ng pagkain.*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. That will be all, Mr. Ortonio.

MANIFESTATION OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri noted that several testimonies had referred to the findings of the Commission on Audit (COA) that were not yet final due to pending motions for reconsideration. He asked whether the Court could inquire with COA on the status and expected resolution of the pending matters, noting that a final decision would help guide the senator-judges' deliberations and avoid repetitive questioning.

The Presiding Officer explained that COA, as an independent constitutional commission, could not be compelled by the Court to act. He noted that the periods for filing an appeal or certiorari had not yet lapsed. He likewise noted that there are cases decided by the Supreme Court to the effect that a final determination by the COA is not necessary for a case to be heard and tried by the Court to hear and decide. He further clarified that the Impeachment Court is not precluded from deciding based on the available evidence with respect to the Article of Impeachment.

Senator-Judge Zubiri reiterated that final COA findings would be important to the Court's deliberations, clarifying that he was merely appealing for prudence and guidance, not seeking to compel COA. He suggested that the Court inquire with COA representatives on the expected timeframe for resolving the pending matters.

ADMINISTRATIVE MATTERS

- The Presiding Officer granted the request to reschedule Colonel Boransing's appearance to September 1, 2026, citing the exigencies of his position as commanding officer of Task Force Zamboanga and the need to coordinate with his superiors before leaving his post. The corresponding subpoena was ordered issued for that date.
- With respect to Retired Major General Bajao, the Presiding Officer noted that the address provided had not been found by the Armed Forces of the Philippines (AFP). He directed the Prosecution to coordinate with the Philippine Veterans Affairs Office (PVAO) or the AFP Pension and Gratuity Management Center to obtain his current address for purposes of serving the subpoena. Representative Luistro subsequently informed the Court that the Prosecution was dropping the presentation of Major General Bajao as a witness but would proceed with Colonel Boransing and Colonel Magtangol Panopio, both scheduled to appear on September 1, 2026.
- To maximize the Court's schedule, Representative Luistro requested the issuance of subpoenas *ad testificandum* to Atty. Michael Wesley T. Poa and Ms. Marizza B. Grande of the Philippine Statistics Authority (PSA), with the intention of presenting them on September 2. The Presiding Officer ordered that Attorney Poa instead be called to testify immediately should either of the two witnesses scheduled for September 1 fail to appear, as the former was already present and willing to testify.
- The Presiding Officer granted the motion of the Panel of Prosecutors to conduct a conference for the marking of additional exhibits, particularly documents received from the PSA, at 4:00 p.m. of August 26, 2026 at the Recto Room, and directed counsels to send representatives to attend.
- The Court granted the request of the Counsel for the Respondent for copies of the Prosecution's pre-marked exhibits for Article I, noting that these were common exhibits, and directed the Clerk of Court to furnish the requested copies to the Counsel for the Respondent, with the understanding that the Panel of Prosecutors would be accorded the same courtesy should it make a similar request for documents marked by the former.
- Considering that the Panel of Prosecutors also wished to avail itself of the opportunity to mark additional documents, Attorney Sison requested that they be also allowed to avail of additional settings for the marking of documents, including further conferences when necessary, to facilitate the preparation of its presentation and maximize the Court's available time. The Presiding Officer granted the request without requiring a separate court order, subject to the availability of the parties and the Clerk of Court.

- On the Prosecution's request for supplemental subpoenas to additional banks and financial institutions, the Presiding Officer adopted the Impeachment Court's July 20, 2026 ruling and imposed the same limitations. The request was granted with respect to records involving the respondent, her spouse, Atty. Manases Carpio, and the 20 entities in which the spouses hold an interest. The subpoenas were limited to peso-denominated accounts and excluded foreign-currency deposits, unless the depositor's written consent is obtained. The Clerk of Court was directed to issue and serve the subpoenas and require submission of the requested documents within seven days..

Atty. Sison placed on record the Respondent's reservation of the right to comment on, and raise appropriate objections to the subpoena and the bank records and other materials covered by it, as well as to pursue any available remedies outside the Impeachment Court. The Presiding Officer acknowledged the reservation.

- Regarding the public statement made by the Respondent, while the Presiding Officer was earlier making a ruling on *sub judice* matters, the latter stated that the public statement was covered by the ruling, and directed the Respondent's lead counsel to remind the Vice President to comply with the Impeachment Court's ruling and Rule XVIII of the Rules of Procedure on Impeachment Trials, particularly its prohibition against commenting on the merits of the impeachment case. He warned that any subsequent violation could result in appropriate action by the Court. He further warned that a violation of the order may carry consequences separate from contempt, as the Chair may refer the matter to the Supreme Court or the Office of the Bar Confidant, where the conduct appears to violate the Code of Professional Responsibility and Accountability (CPRA) .

The Presiding Officer said that it was not necessary to state into the record the Vice President's statement, but the Impeachment Court could take judicial notice, if necessary.

INQUIRY OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino sought clarification on the possible penalties for violating the Presiding Officer's ruling on the impartiality and decorum of the Senator-judges and Counsel.

He asked whether violations by senator-judges would be referred to the Senate Committee on Ethics, and what penalties could apply to counsel, respondents or complainants, and other persons covered by the ruling.

The Presiding Officer replied that the corresponding guidelines would be issued in a clear, tabulated format. He stated that violations may be met with reprimand and admonition, followed by fines for second and subsequent offenses, without prejudice to the referral of the matter to the Supreme Court, the Integrated Bar of the Philippines (IBP), and/or the Office of the Bar Confidant, particularly where the conduct may constitute a violation of counsel's obligations as officers of the court.

Thereafter, the Presiding Officer excused Mr. Ortonio and thanked him for his time, cooperation, and responses to the questions of the senator-judges and both parties.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

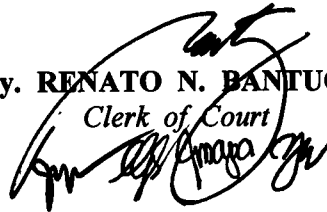
The Presiding Officer declared the impeachment trial adjourned until ten o'clock in the morning of Tuesday, September 1, 2026.

It was 3:05 p.m.

I hereby certify to the correctness of the foregoing.

Approved on September 1, 2026

Atty. RENATO N. BANTUG JR.
Clerk of Court

A large, stylized handwritten signature in black ink, likely belonging to Atty. Renato N. Bantug Jr., is written over the printed name and title.